

SIKIA

CONSTITUTIONAL HISTORY

LOW

² **INTRODUCTION & COURSE OUTLINE**

1. Nature of Teaching of the Course

- (a) Lectures (socratic/lecture method) (4 hours per week)
- (b) Tutorials (1.5-2 hours: Friday & Saturday) – questions to be availed by 3rd week (tutorials to start in early November)
- (c) Student attendance & participation
- (d) Reading-List for Course – available by end of week
- (e) Coursework (account for 30% of final mark) – question and modalities by 2nd week (choose any topic) – to be handed in by Saturday, 21 December 2002
- (f) Examination (70% of final mark) – end of semester I

2. Scope of the Course

Constitutional history – Protectorate of Uganda (1894-1962) and pre-1995 Independent Uganda (1962-1995)

NB. Examination questions set along the two segments of the course – Section A (1894-1962) and Section B (1962-1995)

3. Content of the Course

- (a) **Nature of the Constitution – origins of ideas (Magna Carta, Bill of Rights, etc.)**
- (b) **Pre-Colonial Uganda and the Nature of the Constitution**
- (c) **Colonial Rule and the Birth of Constitutional States in East Africa/Uganda (1894-1962)**
 - (i) Colonial Experience in Kenya and Tanganyika
 - (ii) (B)uganda Agreement of 1900 and Significance in constitutional history
 - (iii) Uganda Orders-in-Council of 1902 and 1920
 - (iv) Colonial Administration between 1902 and 1920 – native authority, repugnancy clause, etc.
 - (v) Uganda Protectorate in the 1920s and 1930s – *bataka* and peasantry grievances (*busulu-evunjjo*); O-I-C *vis-à-vis* kingdom agreements
 - (vi) ‘Human Face’ period of Colonial Rule (1940s onwards) – Overview
 - (vii) Constitutional Reforms and the Kabaka Crisis (1953-5)
 - (viii) Sir Andrew Cohen as reformist Governor of Uganda (1952- 57)
 - (ix) Birth of Political Parties – UNC, DP, UPU, PP, UPC, KY, etc.
 - (x) Preparations for Independence – Wild/Munster reports, Buganda’s intransigence, Lancaster/Marlborough conferences

(d) Independent Uganda – ‘Grappling’ with the Constitution (1962-65)

- (i) West-Minister model of Government *vis-à-vis* Problems of Head of State
- (ii) Unitary-Federal Question – Buganda within Uganda
- (iii) Question of the ‘Lost Counties’ – referendum of 1964 and worsening of Mutesa-Obote relations
- (iv) Overall Problems of political Governance (e.g. *Lyagoba*)
- (v) Onset of the Kabaka (Uganda) crisis of 1966 (1963-5)

(e) 1966 Buganda Crisis and Obote I ‘Emergency’ State (1966- 71)

- (i) Events leading to and of the Crisis in 1966
- (ii) *Ibingira cases I & II* and the Judicial Power of Courts
- (iii) *Ex parte Matovu case* and the phenomenon of extra-constitutional changes of government in Uganda
- (iv) Demise of Judicial Independence in Obote I regime (1966- 71)

(f) Amin Era of Militant Politics to Obote II period (1971-1985)

- (i) Legal Notice No. 1/71 and Constitutionality of the Amin regime
- (ii) UNLF period and ousting of Yusuf Lule – *Lutakome Kayira case* (1979)

(iii) Obote II regime and the Fate of Constitutionalism

5



(g) **Ascendancy of the NRM to the Promulgation of the 1995 Constitution**

- (i) 'Fundamental Change' and 'Not a mere change of Guards' –
NRM/A and Constitutionalism in Uganda
- (ii) NRM/A government and the Courts – *Ssempebwa* (1986)
- (iii) Constitutional-Making Process and Political destiny of Uganda (1992-95)

4. Basic Reading

Hansen, H.B. & M. Twaddle (eds), *From Chaos to Order: The Politics of Constitution-Making in Uganda* (Kampala/London: Fountain/James Currey, 1995).

*Kanyehimba, G.W., *Constitutional Law and Government in Uganda* (East African Literature Bureau, 1975).

*Morris, H.W. & J.S. Read, *Uganda: The Development of Its Laws and Constitution* (London: Stevens, 1966).

*Oloka-Onyango, J., 'Judicial Power and Constitutionalism in Uganda', CBR Working Paper No. 30 (1993).

NATURE AND CHARACTER OF THE CONSTITUTION AND STUDY OF CONSTITUTIONAL HISTORY

7

I. The Nature and Meaning of a Constitution

A Constitution is a set of rules and norms expressing the aspirations of a people. It underpins the normative and legal framework that regulates and governs a country and its structures of government. A constitution is often regarded as the supreme law of the land (*grundnorm*), such that all other laws (and customs) and acts of government (and of its organs or agencies) derive their validity from the constitution. In that respect, any other law (or custom) and acts of government (or its organs or agencies) that is inconsistent with the constitution, will to the extent of that inconsistency, be treated as null and void (and the constitution shall prevail).¹ As such, the constitution is regarded as the *fundamental law* of the land.

II. Necessity of Study of Constitutional Law.

(a) We study constitutional history because we want to look at our past, recommend whatever is worth reforming, learn from that past and help in the furtherance of improvements and aspirations of the future. This is for instance evident from the preamble to the 1995 Constitution of Uganda, which provides, *inter alia*, that:

RECALLING our history which has been characterized by political and constitutional instability;

¹ See Constitution of the Republic of Uganda, 1995, art. 2.



9
.... COMMITTED to building a better future by establishing a socio-economic and political order through a popular and durable national Constitution based on principles of unity, peace, equality, democracy, freedom, social justice and progress;

The study of constitutional history allows us to draw important lessons from the past and apply them to our examination and appraisal of the present as well projections into the future. It is hoped that from considering those things that did not work, we can devise ways of improving their present form and future aspirations, and cherishing those that have worked, e.g.

- 1962: federal structures (cf. 1995)
- 1967: excesses of executive power and restrictions on human rights (cf. legislative powers – prorogue Parliament!)

(b) Constitutional history also provides the premise upon which we can examine the fashion in which human society is organised, its structures of government, its body of laws and the relations between the ruled and rulers of a particular time/period. Entities that are today referred to as Uganda (Kenya, Tanzania, etc.) are all creations of historical processes (cf. UK, US, etc.). Those processes are the result of internal and external factors motivating the evolution of mankind and society. Whereas Uganda (etc.) did not exist prior to its colonial creation, the peoples of its present geographical area lived and existed under frame-works of government which continue to be important today (e.g. kingships, chieftaincies (or traditional rulers)).

(c) Further, as all laws derive from the fundamental law, it is imperative to

¹⁰

examine the manner in which the fundamental law is itself derived (and promulgated)



- Kelsenian theory and changes to constitutional legal order
- constitution-making process (imposition v. consensus)

(d) We study constitutional history because the concepts and principles that are central to *constitutional law* (e.g. separation of powers, independence of the judiciary, parliamentary democracy, human rights) can only be understood against their origins in the Anglo-American tradition (which also bequeathed the written constitution) and their evolution and application in the history of Uganda as a modern state (in its colonial and post-independent periods).

* * * * *

ORIGINS OF THE IDEA OF THE CONSTITUTION - ANGLO-AMERICAN VIS- A-VIS PRE-COLONIAL AFRICAN SETTING

I. Euro-centric and American Origins - Antiquity to Eighteenth Century

1. Ancient Greece with its scholars such as Aristotle, Socrates and Plato gave us the idea of the modern state and government. The *polis* (city-state) was considered to be of such a size that allowed participation of all citizens in the affairs of government, and thus the concept of 'direct' democracy (no longer feasible in modern large states). Further, in the open life of the market square, men of all classes met and talked with one another, and democratic ideals of equality and freedom assembly and speech found their natural root.²

2. Ancient Roman empire gave birth to the idea of citizenship by seeking

¹² to define rights and duties that attached to the status of a citizen – this was largely intended to exclude foreigners from active participation in the affairs of

² E Barker, *Greek Political Thought - Plato and His Predecessors*, 3 ed. (1947) 19).



government. Further, ancient Rome with its Senate gave to the modern state the institution of a formal law-making body (legislature) to make law and debate policy.

3. Feudalism during the mediaeval era in Europe was largely a society of noble- men, feudal lords and merchants and craftsmen, and the economies based on land, agriculture and trade. It is a period of absolutism in the power of the noblemen and feudal lords over liberties of the individual labourers and merchant concerns over taxation in trade. On the other hand, the influence of Christianity at the time also saw the conflict between church and the State. During this period in England, there were developments to restrain such absolutism. One of these developments occurred in the 13th century in 1215 in the form of the *Magna Carta*, often recognised as the first constitutional document in Europe. It contained clauses in two key elements: (a) the right to trial by jury, and (b) the writ of *habeas corpus*. This emerged to restrain the power that the noblemen had to detain and hold people without trial. By introducing the writ, this secured individual liberty. Other innovations of the *Magna Carta* were: (c) the church was to be free of the state (religious freedom); (d) the cities (boroughs) were to enjoy basic liberties (devolution of powers), and (e) merchants were not to be subjected to undue or unjust taxation.

4. Such ideas continued to permeate Europe until 17th and 18th centuries, a period characterised by outgrowth of **political thought** and **revolution**. One significant instrument was the *Petition of Rights* of 1628 which gave further statement to certain constitutional principles: (a) there would be no taxation without the consent of parliament (no taxation without representation), and (b) there would be no arbitrary arrests (and damages would be recoverable

¹⁴
from the state).

SIKIA
Low

5. The political thinkers of the time - Locke, Montesquie, Rousseau - would also shape the relations between government (and its organs) and its subjects (and their rights). Their political theories would define not only political and constitutional ideas but shaped the events of the period. Lockes' *Two Treatises of Government* (1682) addressed the nature of society, rights of the individual (in particular property rights) and the ethical imperatives of government. It is often taken as the premise for the Whig Revolution and the 1688 Bill of Rights that finally secured a constitutional monarchy subject to parliamentary control (at the same time it gave effect to property and economic rights (trade unions, etc) and religious freedom). Montesique's *The Spirit of Laws* dealt with separation of powers, a basic concept of modern constitutional law, and whose form has perhaps been evident in America's constitutional history. Rousseau's *Social Contract* (1762) posited the idea of the 'General Will' of the people as the basis of government (to be couched in theory of 'sovereignty of the people'), and which would form the basis of the 1776 American Declaration of Independence and the 1791 and 1795 Declarations on the Rights of Man and the Citizen.

6. America's declaration of independence from Britain marked the onset of her development as a constitutional state. The 1776 Declaration together with Articles of Confederation were basically the first American constitution but the Philadelphia conference of 1787 scrapped the Articles, and a new constitution was proposed for the new states. The 1789 Constitution comprised 13 articles, but has since had 26 amendments, each of which represented major struggles in the establishment of democracy in the United States (organs of government; human and civil rights (cf. blacks), etc.). The French revolution of 1789 rid the France of the absolutism of the monarchy, and by 1795, the Declaration on the Rights of Man and Citizen affirmed individual rights and freedoms (e.g. liberty, property, etc.) and peoples' rights

¹⁶
(e.g. popular sovereignty).

SIKIA
Low

II. Pre-Colonial African Societies - Features of Governance and Social Structures

7. The African setting was one of extreme diversity with structures of government reflecting the different levels of development. There were centralised and decentralised societies, and while some of the societies had developed a class-based systems, most of them were communalistic. It is the latter feature that defined the forms and structures of governance as well the relationships between individuals. Social values placed the individual within the family, kinship, clan, tribe (historically incorrect term) (*nation*), from which all his or her life revolved (land, marriage, penalties). At the simplest of structures of governance was leadership based on age-sets and the council of elders and clan-systems. The more complex forms of political organisation was evident in the more centralised societies ruled as kingdoms and chieftaincies (prominent in the interlacustrine region) where the kings exercised absolute power in appointments, land distribution, judicial decisions, etc. (e.g. Buganda). It was these kingdoms that, given the developed state of structures of government, that the colonial power would apply the policy of 'indirect rule'.

8. The pre-colonial societies that occupied geographical entities today known as Uganda, Tanzania and Kenya basically existed as autonomous and semi- autonomous institutions of governance. The process by which these entities were transformed into new states created under colonial rule caused serious destruction of the social and political fabric of these entities. This coupled with the introduction of new (alien) forms of government was to have a lasting impact on the structures and substance of government in the colonial and post-colonial periods (evident even to present day).

* * * * *

SIKIA
Low

EVOLUTION OF CONSTITUTIONAL STATE IN TANZANIA

The scramble for Africa at the dawn of the 19th century, which pitted the major European powers against each other, was eventually settled through an international conference in Berlin in 1884. However, prior to the Berlin Conference, the powers had already effectively secured spheres of influence, and the conference only served to give effect to demarcation of territories. The major actors in the partition were Britain, France, Germany, Portugal, and Belgium and to an extent Spain and Italy.

East Africa was invariably one of the main spheres of influence where hitherto relations that had developed with the Sultanate of Zanzibar and subsequently through the activities of the missionaries, explorers and chartered companies. The early colonial history of the three territories ((B)uganda, Kenya, Tanganyika) is largely similar in several respects, although there are also certain distinctions. The imposition of colonial rule and authority bore certain features:

- Role of chartered companies in the early demarcation of spheres of influence.
- Imposition of colonial rule (powers, phases of administration, mode of administration (indirect rule, agreements, legislation, O-I-Cs)
- Nature of administration (harsh, taxation, forced labour) - structures (commissioners, governors, local chiefs, Exec. Co., Leg Co., courts, etc.)
- Civilizing character of rule (repugnancy doctrine and African social values, missionaries & religion (conflicts), education (schools), health

(dispensaries, hospitals), commerce & trade, cash crop economy (banks, loan-schemes), local administration)



- Land question (settlers and alienation, crown land & *butaka*, etc.)
- Political and constitutional development (instruments & constitutional ideas, political parties, African representation and preparation for self-government)

For the country today referred to as Tanzania, its constitutional history began with the establishment of German rule in mainland Tanganyika and kingdoms of Ruanda-Urundi. German rule was basically established between 1886- 1890, and would last until 1914-1916. The mechanism used to establish rule was by use of a chartered company (German East Africa Co.). Under the GEAC rule, life was harsh and administration was ruthlessly effected. The labour policy was based on force and land was alienated from the local peoples as the basic economic being of the territory moved from traditional subsistence farming to commercial plantations. Because of the harshness of company administration, the German government stepped in directly and established its own overrule. The colonial administration was represented by a Governor assisted by an advisory council and whose main role was making laws and financial appropriations.

The territory was divided into 21 districts with each of them under a District Commissioner. The DCs were assisted by Akidas who had control and responsibility for maintenance of law and order and resolution of cases/disputes (magisterial powers under pockets of villages). The Akidas were likewise assisted by the Jumbes who were basically the village headmen and the performed the same functions (*this represents the German version of 'indirect rule'*). Direct rule was imposed on all districts except the district of Bukoba, which together with Ruanda-Urundi, more or less retained their pre-colonial methods of authority and a system of indirect rule

²²
despite German efforts to crush this.

SIKIA
LOW

When the German rule ended in Tanganyika soon after the hostilities started in 1914, part of the territory was placed under military administration by Hores Byatt. In 1917, he was appointed administrator of the liberated parts of the territory, and by 1919, he took over the whole of the territory. Subsequently, Tanganyika was placed under a mandate with Great Britain as the mandatory Power, under which it remained until independence in 1961. British rule was formalised in 1920 via the Tanganyika Order-in-Council, 1920 (legislation by the Queen).

(i) what was the impact and influence of the period of German rule on the evolution of the constitutional state (did it make any difference?)

(ii) how did the transition from German to British rule affect the existence and evolution of 'constitutional' state in Tanzania?

(iii) of what significance were these developments after 1919 to the wider issue of political and constitutional developments in the East African region?

O-I-Cs and 'repugnancy doctrine':

Gwao bin Kilimo v. Kisunda bin Ifuti (1938) TLR 403 (Tanganyika).

* * * * *

EVOLUTION OF CONSTITUTIONAL STATE IN UGANDA



Uganda has many similarities with the history that characterised the birth of Tanzania and Kenya. The source of the Nile and economic-strategic interests had already ignited colonial rivalry over East Africa. But the rivalry in Uganda probably was fostered initially in the character of religion, whose very intensity would threaten social order within the territory, particularly in Buganda. The Protestant and Catholic missionary groups were engaged in a religious rivalry which in underlying tones was political rivalry given the backing powers – Britain and France. It is pertinent to say that from the outset of the existence of Uganda as a state, politics and religion was inter-related as early through the missionary influence in Uganda. The religious group that emerged dominant was the Protestant and it would also become the dominant force in the political evolution of the colonial (and post-colonial) state in Uganda. The religious factor would permeate the social life (schools, hospitals, etc.) and political (political parties) of Uganda's history even up to the present day (although the Arab influence itself gave birth to the minority religion of Islam, and which in the Amin era gave that political period gave the Moslems a dominant role). The struggle among the religions in Uganda's political and constitutional development has thus been a salient feature of our history.

The religious factor was in its early form prominent in the seeking of favours of the Kabaka by the missionary groups in Buganda. Eventually after the resolution of the religious conflict in Buganda and after a brief period of administration by the IBEACo., and the wars of resistance (especially in Kabalega's Bunyoro and Mwanga's Buganda) had been subdued, the British flag was erected in Uganda for the first time on 1st April 1893 at Fort Lugard (Old Kampala Hill). The protectorate was declared a year later, and between 1894-1900, the British consolidated their

²⁶
administration and overrule over the protectorate. In 1900, the British entered into an agreement with Buganda



(ruling faction) (Uganda Agree-ment) whose significance was to pervade most of our colonial and post-independent period in both political and constitutional terms.

- (a) first of its kind in Uganda (subsequently led to other agreements with the other kingdom areas - Toro (1900), Ankole (1901, 1941), Bunyoro (1933, 1937)
- (b) introduced *indirect rule* as a policy of colonial rule (and established and confirmed British overrule (cf. art. 6) with the Kabaka in effect relegated to a 'puppet' status)
- (c) gave Buganda *privileged* status over other parts of the protectorate (in spite of provisions to the opposite) and improved socio-economic position of Buganda
- (d) confirmed the *boundaries* of Buganda (territory)
- (e) introduced the first instances of orderly political governance (thus it is often considered first 'constitutional' instrument in Uganda's history)

II. The 1900 (B)uganda Agreement – Its Provisions and Significance

The Buganda Agreement was signed on 10th March 1900 between Sir Harry Johnstone (who was His Majesty's Special Commissioner and Commissioner- in- Chief of the Protectorate) and the regents (and chiefs) Sir Apollo Kaggwa, Stansilus Mugwanya and Nuwa Mbogo (on behalf of the infant King Chwa II). The Agreement had 22 clauses the majority of which were to be of profound significance for Buganda in particular and the Protectorate of Uganda as a whole.

²⁸

1. Article 1 of the Agreement demarcated the boundaries and laid down the territory of the kingdom. In so doing it established the geographical, political,



and administrative jurisdiction of the kingdom. Together with article 9 which set out the 20 administrative units (counties) of Buganda, the agreement confirmed the kingdom as the primary entry point for the control of the rest of the protectorate. The demarcation of the territory of the kingdom would be of great significance:

- (a) it placed a restraint upon the expansionist tendencies of Buganda kingdom, as its territory was now clearly demarcated and defined
- (b) it defined the administrative (taxes), judicial (courts) and politico-military jurisdiction of the kingdom
- (c) within the boundary demarcation was the territory which belonged to Bunyoro give to Buganda for her assistance in the defeat (and pacification) of Bunyoro. This territory constituting 7 of the 20 counties would later be dubbed the 'lost counties', and remained a contentious issue throughout the political and constitutional development of the protectorate (and the immediate independent state).
 - memoranda by Bunyoro during the conclusion of 1933 and 1937 Agreements
 - debate and disagreement over matter during the 1961 and 1962 constitutional conferences (Marlborough & Lancaster) (resulting in appointment of the Mouson Commission)
 - *Joseph Kasaraine v. The Lukiiko* [1963] EA 472
 - Referendum on the lost counties in 1964
 - *Kabaka's Government & Anor v. Attorney-General of Uganda & Anor*, Privy Council App. No. 56 of 1964 – challenge of validity of referendum
 - Constitution of Uganda (Third Amendment) Act, No. 36 of 1964.

2. Article 2 provided that the Kabaka and chiefs agreed to forfeit collection of tribute from neighbouring provinces in favour of His Majesty's government. In effect, the agreement affirmed the process of transfer of economic power and control into the hands of the colonial government, as an underlying the essential objective of the colonial state. (cf. art. 4 - merger of revenues; art. 6 - overrule)

3. Article 3 stipulated that Buganda would rank as a province of equal standing with any of the other provinces in the protectorate (to which it may be divided).³ The intention of this article was to prevent Buganda claiming any special/privileged status within the protectorate. While this was the letter of the of the agreement, the spirit of it was to in fact give Buganda an enhanced position, which would eventually lead to the struggles (conflicts) between Buganda and the rest of Uganda which has the history of the protectorate in the last ten years. From 1953, Buganda became involved in struggles to enhance its position, defend her interests or even assert its independence, e.g.

- opposition to idea of a unitary State (along parliamentary lines) and that of the East African Confederation
- 1960 memorandum/petition to Her Majesty's Government seeking independence (for the kingdom)
- boycott of 1958 and 1961 elections on grounds that held on basis of 'direct elections' rather than 'indirect' elections as envisaged under the 1955 Agreement
- demands for a 'federal status' and indirect elections' during the Lancaster & Marlborough conferences

³ The Protectorate was later divided into five provinces under the 1902 Order-in-Council – Nile, Rudolf, Central, Western and Buganda. In 1926, the Rudolf Province became part of modern day Kenya: Kenya Colony and Protectorate (Boundaries) Order-in-Council, 1926 and Proclamation (under Article 6) Uganda Order-in-Council, 1926.



4. Article 4 stipulated that the revenue of Buganda Kingdom collected by the colonial administration would be merged with the general revenue of the protectorate. Although no implications of article 4 during the colonial period, the import of such provision would be more evident under the 1962 constitution, which sparked off the conflict between the kingdom's government and the central government.⁴ (cf. art. 2 - tribute; art. 6 - overrule).

5. Article 5 stipulated that the laws made for the general governance of the protectorate were applicable to Buganda except where they are in conflict with the terms of the agreement, in which case the terms of the Agreement were to prevail. In effect, the protectorate laws would be null and void to the extent of the conflict. The significance of this article lies in the fact that it laid down the law applicable as regards legitimacy of protectorate laws and status of the agreement provisions. It was largely designed to appease the kingdom, and would eventually turn out to be a blind and empty gesture as it did not stop the colonial administration overriding terms of agreement (and several cases would demonstrate this) when it suited the administration (cf. *R v. Besweri Kiwanuka* (1937); *Mukwaba & Ors v. Mukubira & Ors* (1954); however: *Nasanairi v. Bertie Smith* (1908)). In essence, the colonialists started the practice that has been copied time and again of treating constitutional arrangements as mere strips of paper not worth the ink in which it is written.

6. Article 6 stipulated that His Majesty's Government would *recognise* the Kabaka as the native ruler of his people and so give him *protection* so long as the Kabaka, chiefs and the people of Buganda will conform to the laws (and *overrule*) of His Majesty. This article is the crux of the whole agreement as it covers the essential elements of the phenomenon of colonial rule- (i)

indirect rule through the Kabaka as the ‘native’ ruler of his³³
people, and (ii)

⁴ cf. *Kabaka’s Government v. Attorney-General of Uganda* (1965) EA 395.



subordination to authority and control (overrule) of colonial administration. At the same time it spelled out consequences of the failure to co-operate as being the withdrawal of protection as would happen in 1953 (cf. *Mukabwa v. Mukubira* (1954)).

There are other significant facets to article 6, viz: -

- (a) it attempted to address the leadership wrangles that had been a major issue in the run-up to colonial rule imposition, by providing that the Lukiiko would determine who should succeed upon the death of the Kabaka, although ultimately the colonial government had the right to veto who would eventually become the Kabaka (attempts to get the Lukiiko to appoint a successor in 1953 were to be futile).
- (b) it defined the jurisdiction of the courts of the Kabaka's kingdom, stipulating that this would cover all so-called 'natives' (cf. Natives Auth. Ord.; *Nasanairi v. Bertie Smith* (1908)), but limitations were placed on the punishments to be issued by the Kabaka, showing that the colonial government remained the supreme authority;
- (c) it spelt out aspects of remuneration, providing that the Kabaka would be guaranteed a yearly allowance of BP1500 (also to be paid BP650 for household needs during years of minority, and regents would get an annual salary of BP400)(the majority age was set at 18 years);
- (d) it stipulated that the Kabaka would be addressed as 'His Highness' and receive a 9-gun salute during ceremonial functions (while Queen got 21- gun salute) (cf. post-1962 squabbles as to salute and TV appearances).

It is clear from the above aspects that overall authority was vested in His Majesty's government and that the Kabaka ruled at its pleasure.

7. Article 7 provided that the Namasole (mother of the King) was to receive a lifetime allowance of BP 50 a year. However, this sum was designated during the lifetime of the existing Namasole, and was not necessarily to continue for others.

8. Article 8 stipulated that in cases of a mixed nature (i.e. cases involving natives and non-natives) were subject to British courts (cf. arts. 6 (over-rule, and 11 (Lukiiko & property of Europeans).

9. Article 9, as already noted, divided Buganda into 20 administrative units (counties) each of which was to be headed by a chief selected by the Kabaka's government but approved by the colonial administration. The chiefs were receive BP 200 and carry out functions as:- (a) administering of justice; (b) assessment and collection of taxes; (c) up-keep of roads; and (d) general supervision of native affairs. With respect to all these matters, except the collection of taxes, the chief was to report to the Kabaka's government. With regards to the axes, the chief was responsible to the colonial administration, and if he failed to carry out his duties, the then colonial administration could call on the Kabaka to dismiss him, and replacement with another chief capable of carrying out those duties better. (cf. taxes & economic power - art 12; forced labour' (*kasanvu*) & roads up-keep - art. 14, *vis-a-vis* autocratic powers of chiefs on law and order - *Native Authorities Ord., 1919*; etc.)

10. Article 10 stipulated that the Kabaka would be allowed 3 ministers/ native officers of State: (a) Prime Minister (Katikiro); (b) Chief Justice; (c) Treasurer, to be approved by the colonial administration. The 3 were to receive BP 300 as payment for services rendered (except during period of regency- BP 400). The native officers would act as a conduit for relations

³⁶
between the Kabaka and the

SIKIA
Low

colonial administration. The PM was to be *ex officio* member and president of the Lukiiko (with the Chief Justice as vice-president).

11. Article 11 constituted the Lukiiko as the native legislative body (council) of the Kingdom. This comprised, apart from the three ministers, each county chief who were to be *ex officio* members, and six other persons appointed by the Kabaka. The functions of the Lukiiko were:

- (a) discussion of all matters relating to administration of the kingdom;
- (b) act in certain instances as a Court of Appeal on matters involving property (>BP 5) and sentences of imprisonment (> 1 week) (revision) (cf. <BP 100 and sentence of imprisonment < 5 years or death (referral to Kabaka) (cf. Uganda Agreement (Judicial), 1905). The Lukiiko had no power over the property belonging to Europeans.

Membership of the Lukiiko was confined to the natives (citizens) of Buganda. And in selecting his representatives, the Kabaka was under a duty not to take into account the religious affiliation of any person selected, with the provision allowing his use of his judgment and advice of the colonial administrator. (cf. 'fair representation of all recognised expressions of religious belief'; cf. *Mukabwa v. Mukubira* (1954) - composition & nominations to Lukiiko).

12. Article 12 provided for taxation as contribution to the general running of the protectorate. It established a system of taxation with the following taxes:-

- (i) hut tax (3 rupees, 4 shs per year) imposed on every house used as dwelling place; and (ii) gun tax (3 rupees, 4 shs per year) to be paid by any person who possessed/used a gun. Under the provision, the Kabaka was

³⁸

granted 50 gun licences free for 50 men in his household. The Namasole was to get 10 and the Ministers 20, county chiefs 10, and other members of Lukiiko 1.



- exterior taxation (customs & porter regulations)
- no other tax to be imposed except with agreement of Kabaka guided by majority votes of the Lukiiko
- not affect taxes (rates) on such things as lighting, water, market dues, etc.

13. Article 13 dealt with the question of military service. It recognised the Kabaka's pre-existing right to conscript able-bodied men for military service in defence of the country should the need arise, save this right would now be exercised under advice of the colonial administration

14. Article 14 provided for the maintenance of roads. It would give the county chiefs the power to raise labour (*kasanvu*) and force able-bodied man to work on repair of the roads (cf. Native Authorities Ord., Native Administration Tax Ord.)

15. Article 15 concerned with the distribution of land, and was to be a critical element in the subsequent history of Uganda (and continues even to date). The land was redistributed as:-

- (a) 1,500 sq. miles of forest to fall under control of colonial admin.
- (b) 9,000 sq. miles of wasteland vested in HM Government and under control of colonial admin. (with (a) became the *crown* land) (see: cf. art. 18)
- (c) 350 sq. miles of plantations and other private property of the Kabaka
- (d) 16 sq. miles for the Namasole
- (e) 10 sq. miles of plantations and other private property to

SIKIA
Low

- (f) 32 sq. miles for the four princes (each 8 sq. miles)
- (g) 90 sq. miles for the princesses, sisters and relations of the Kabaka
- (h) 320 sq. miles for country chiefs - as private property totalling 160 (each 8 sq. miles) and official estates of the counties similarly 160
- (i) 96 sq. miles for the Regents - as private property totalling 48 (each 16 sq. miles) and official property attached to office similarly 48
- (j) 24 sq. miles for Mbogo as leader of Mohammedans (cf. art. 19)
- (k) 20 sq. miles for Kamswaga as chief of Koki
- (l) 8,000 miles for 1,000 chiefs and private landowners (mostly estates already in possession) (each computed at 8 sq. miles)
- (m) 92 sq. miles for the three missionary societies
- (n) 50 sq. miles as land taken over by colonial government for its stations

Because of the distribution of land in miles, this came to be known as *mailo* land, but it is basically freehold. This provision would have political, socio-economic and cultural impact (and struggles) in the history of Buganda and Uganda.

- (a) dispossession of Bataka (as clan-leaders) of clan burial land (butaka) (ultimately demise of the communal ownership of land: *Mwenge v. Miggade* (1933)) - later Bataka uprisings (traditional v. politics)
- (b) mailo land as 'freehold' land placed emphasis upon the *individual* ownership as land become the basic unit of economic development (cf. colonial administration's interest in small landowner - later *Busullu-Evunjjo Laws*, 1928)

⁴²

(c) *Land Act, 1998* (and the 9,000 sq. miles).

SIKIA
Low

16. Articles 16 and 17 dealt with promulgation of forest regulations and rights over minerals found on private estates, etc. (cf. control over natural resources)

[17. Article 18 dealt with trust compensation for the 10,500 sq. miles taken as crown land]

18. Article 20 stipulated a penalty in the event of failure by the people of Buganda to raise and pay the minimum amount of taxation due. Upon failure to do so, the colonial government would consider itself not bound (cf. policy of disloyalty). However, if there was an excess, the Kabaka and chiefs could appeal to the colonial government for a raise in proportion to the excess (but this would lie at the discretion of HM).

19. Though the agreement was written in both English and Luganda, the English version was the one to be used in interpreting its terms (article 22)

Overview/Concluding Remarks

(i) The Agreement reflected a high degree of infusion of powers vested in the Kabaka, his Ministers, county chiefs and British Crown. There was in other words a blatant disregard of the principles of separation of powers

(ii) While there are several references to the ‘people of Buganda’, these were not participants in the agreement (making of agreement, choice in officers of kingdom administration - cf. Bataka clamour in 1945, art. 6 & Mukabwa case, 1954). The agreement in fact reflected very little regard for the independence and autonomy of the peoples of Buganda (a disregard

⁴⁴
evident right from the

SIKIA
Low

manner in which the Kabaka is placed under the overriding control exercised by HM Government - cf. *Yowasi Pailo & Others (1920)*)

(iii) The beneficiaries of the agreement was small clique of chiefs and private landowners, and in creating the mailo land system, disposed many Baganda which has continued to date.

(iv) While the agreement represented the first step towards constitutional government (i.e. government by rules), it also marked the first step in undermining the idea of the constitution.

* * * * *

III. Uganda Order-in-Council, 1902.

The 1902 Order-in-Council formalised colonial rule in Uganda, and was the fundamental law of the Uganda Protectorate (cf. Tanzania and Kenya). The O-I-C was an exercise of power granted to His Majesty's Government under Foreign Jurisdiction Act 1890 with respect to its foreign territories (colonies). The 1902 O-I-C dealt with several matters of constitutional significance ranging from provincial and administrative divisions, structures of governance, admin. of justice and maintenance of law and order, to the applicable laws. As the fundamental law of the protectorate, the O-I-C dealt with the following:

1. First, under section 1, it defined the territorial boundaries and provincial divisions of the protectorate. The divisions originally established by the O-I-C were five:- (a) Central Province (Districts of Elgon, Karamoja, Busoga, Bukedi and Labor); (b) Rudolf Province (Districts of Turkwel, Turkana and

⁴⁶
Dabossa); (c) Nile Province (Districts of Doddinga, Bar and Shuli); (d)
Western Province



(Districts of Bunyoro, Toro and Ankole) and (e) Kingdom of Buganda and the Islands pertaining thereto.

2. Second, under sections 4-5, it provided for the office of Commissioner (assisted by a deputy commissioner) who was to take overall control of the administration of the protectorate. He was the chief representative of His Majesty's Government (Harry Johnston). The Commissioner would later become the Governor under the provisions of the 1920 O-I-C.

3. Third, under section 7, the O-I-C vested the crown lands in the Commissioner. Under section 1, it defined crown lands to mean all public land that had been subjected to the control of Her Majesty's Government by virtue of any treaty, convention, or agreement (e.g. Buganda, Ankole, Toro), and all land that might have been acquired for public service. Thus the control of the greater part of land in Uganda was vested in the colonial government (see also s. 7(4) on mineral resources)

4. Fourth, under sections 8-10, the O-I-C empowered the Commissioner to make laws and raise revenue subject only to special instructions of the State. The Commissioner was under a duty to make laws for the peace, order and good governance of all persons in Uganda. By this power the Commissioner was able to establish a regime of laws governing all the aspects of political, social and economic life (*Native Authority Ord.* 1919, *Native Admin. Tax Ord.*, 1938, cf. power to deport - *Deportation Ord.*, 1908)

5. Fifthly, under section 15(1), the O-I-C established a system of judicial power comprising courts of justice, in particular the High Court with unlimited civil and criminal jurisdiction over all cases and all persons in Uganda. This court was called Her Majesty's Court of Uganda. The

⁴⁸
O-I-C conferred upon the

SIKIA
Low

commissioner the power to appoint and dismiss public officers including magistrates and judges, with exception of those from the High Court, which power (of appointment & dismissal) was vested directly in HMG.

6. Sixthly, under section 15(2), the O-I-C contained a 'reception' clause, which empowered the Commissioner to apply any law of the United Kingdom (or any other protect-orate/colony of the UK) in Uganda. This is how the Evidence Act (Cap. 43) (cf. Amkeyo), Contract Act (Cap. 75), Companies Act (Cap. 85); Penal Code Act (Cap. 106) from India came to Uganda. The reception date is of legislation as at 11 August 1902.

7. Seventh, under section 20, the O-I-C contained a 'repugnancy clause'. Section 20(a) of the O-I-C provided:

In all cases, civil and criminal, to which the natives are parties, every court (a) shall be guided by native law so far as it is applicable and is not repugnant to justice and morality or inconsistent with any order-in-council or any regulation or rule made under any order-in-council or ordinance..

The clause recognised native laws and customs subject only to whether they were in conformity with the rules of good conscience, natural justice and morality. It was intended to remove those native laws and customs that were considered backward and uncivilised. The major problem was that the negative aspects were as perceived in the eyes of the colonial power. In other words, it was a subjective test that was applied according to the morals and standards of an English person. The problem with the subjectivity is that many customs which were central to the *social fabric* of the natives communities in the British colonies were rendered void by the

stroke of the English man's pen.

SIKIA
Low

(i) An instance of an implied application of the clause was in the Kenyan case of **R v. Amkeyo** [1914] KLR 14, where the question was whether the relationship between the accused and a certain woman in native custom was one of ‘marriage’ in the strictest sense/meaning of the word. Chief Justice Hamilton considered the features of the relationship as follows:

- the woman was not a free contracting person in the relationship
- the woman was treated more in the form of a ‘chattel’
- the relationship was potentially polygamous

The Chief Justice concluded that the relationship could at worst be seen as one of ‘wife-purchase’ and did not fit in with the idea of ‘marriage’ as generally understood among ‘civilised peoples’ – thus the alleged custom was implicitly repugnant to good conscience and morality.⁵

(ii) The other case on the repugnancy clause, from Tanzania, was **Gwao bin Kilimo v. Kisunda bin Ifuti** [1938] 1 TLR 403. A government tax clerk named Mange, in the ordinary course of his duty collected shs. 10/= from the respondent for poll tax, issued him with a false tax ticket, and converted the money to his personal use. Mange was tried in a criminal court and duly punished. The respondent then sued him in a civil court for the return of shs. 10/= and obtained a decree in his favour. In execution of that decree the respondent caused to be attached by court process two heads of cattle which was not property of the judgment-debtor, Mange, but of his father, Gwao, the applicant. Gwao unsuccessfully objected to the attachment in a lower court, and appealed to the High Court (to revise the decision of the lower court and

⁵ See also: *Abdulrahman v. Republic* [1963] EA (reinforcing this colonial outlook on native customs on marriage) and contrast with *Alai v. Uganda* [1966] EA (where Udo Udoma, CJ rejected this Westernised idea of marriage in the African context).



order his cattle to be returned to him). The issues before the High Court was whether:

- (a) there was an authentic Turu native law which allows the seizure of a father's property in compensation for a wrong done by a son; and
- (b) this native law was one, by virtue of s. 24 of the 1920 Tanganyika Order in-Council, a British court may and should be guided

The Tanganyika High Court held that although there was a custom to that effect, it was not of universal application and no *baraza* of chiefs had ever enforced custom). Judge Wilson referred to art. 24 of the O-I-C to reject such custom (restoration of cattle)

(iii) Another case, from Uganda, that lends interpretation to this clause is *Mwenge v. Migade* (1933) ULR 97, where the question related to the the existence and continuation of customary tenure (*butaka*) in Buganda (and of the inalienability of such *butaka* in ancient customs of Buganda). Judge Gray considered provisions of the 1900 Buganda Agreement and legislation passed by the Buganda government (1908 Land Law) to hold that the practice showed that *butaka* tenure no longer existed (repugnance of continued existence of custom).⁶

Notably, section 20(b) requires the courts in disputes involving natives to administer substantive justice without undue regard to technicalities. In the case of *R v. Yowasi K. Palio & 2 Ors* (1922) ULR 98, where the issue arose with regards to proceedings before the Lukiiko court. Given that in Buganda, the procedure involves a complainant making his own case and in this case the

⁶ It is to be noted that the repugnancy clause survived into the post-colonial period in form of the Judicature Acts of 1962 and 1967 and the Judicature Statute of 1996. See the case of *Best Kemigisha v. Mable Komuntale* (1998). The question is whether the validity of customs should be determined against the test of repugnancy (Judicature Statute, 1996) or test of inconsistency with the constitution (1995 Constitution)



Kabaka was the complainant in respect of sedition against him (and he does not appear before his own courts), the Lukiiko court acted as prosecutor, jury and judge. On appeal, the High Court admitted that the procedures before the Buganda (native) courts should not be the same as those before the British courts and as long as substantial justice is achieved, there was no good ground for overturning the decision of the native court.

8. Eight, under sections 24-25, the O-I-C provided for the Commissioner to order the removal or deportation of any undesirable person from the protectorate in order to preserve peace, order and good government. This was a power that was used on several occasions in order to deal with anti-colonial sentiments in the Protectorate, including prominently, the Bataka agitators. In order to give effect to this power, the Commissioner enacted the *Removal of Undesirable Natives Ordinance*, 1907 and the *Deportation Ordinance*, 1908. The removal and deportation laws did not allow for appeal against or review of the order of the Commissioner.⁷

Implications of the 1902 O-I-C in Terms of Constitutionalism

The O-I-C is very important not only because it is the first legal instrument to establish a framework for the governance of the whole of the protectorate, but also because of the basic elements it put in place. Many of those elements influenced politics and government throughout the colonial period (and the post-independent period). The legacy of the O-I-C is very significant. At the same time the O-I-C represented a negation of the idea of constitutionalism, even those ideas which had developed in the UK at the time, e.g (a) it did not respect the doctrine of separation of powers - the executive officers of government exercised both legislative

⁵⁶
and judicial powers; (b) it did not

⁷ The Deportation Ordinance was amended four times between 1908 and 1956 (latter introduced the element of judicial inquiry: *Binaisa* (1959) EA 997. However, it would not be until 1966 that the deportation law (in post-1962 retained as Cap. 46) was successfully challenged and declared unconstitutional: *Ibingira & Ors v. Uganda* [1966] EA 305.



recognise the rule of law by applying double standards and open discrimination between the indigenous people and the Europeans (non-natives).

The O-I-C gave much prominence to state power, and did not define the rights of the individual (no mention of human rights in the O-I-C). It was also highly coercive as it did not allow for the alteration of state power especially office-bearers (election?) (up to 1962).

Probably the question that has been significant in Uganda's constitutional history has been the relationship (primacy & supremacy) of the O-I-C and the Kingdom Agreements. We noted, in respect of the Buganda Agreement, that the agreement would have such primacy over other laws of the Protectorate.

(i) *Nasanairi-Kibuka v. Bertie-Smith* (1908) where the issue related to the legislative powers reserved to the kingdom under Buganda Agreement vis-avis the 1902 O-I-C. The judge Carter, J., held that the Crown (HMG) could not acquire powers in Buganda which had not been granted by the 1900 Agreement:

As I understand the Agreement, it is not to be regarded as taking away any right or power of the Kabaka except by its express provisions, therefore whatever powers were his before remain with him except as far as they are expressly taken away or limited. A sovereign state has undoubtedly the power of legislating and there is no agreement prior to the 1900 Agreement, so far as I am aware which takes away this right'.

Thus because of the Agreement, Buganda was at that time regarded as retaining still a measure of her original sovereignty which not even the I-O-C issued under the FJA of 1890 could not take away from her.

(ii) *Katozi v. Kabizi* (1907) involved a conflict between the terms of the 1901 Ankole Agreement which reserved certain judicial powers in their native courts, and the terms of the 1902 O-I-C which in establishing the High Court claimed to give it full jurisdiction within the territory. The High Court ruled that the O-I-C could not alter the existing agreements. This judgment was supported by Secretary for State for the Colonies who wrote that:

The validity of the Uganda O-I-C 1902 in so far as it nullifies this reservation is consequently open to question ... In these circumstances, I am advised that the Uganda O-I-C 1902 should be construed in such a manner as not to impair the rights reserved.

(iii) *R v. Besweri Kivanuka*, HC Crim Appl. No. 38/37 (1937) where the issue at hand was whether the High Court set up under the O-I-C had jurisdiction over Buganda. The Buganda Agreement had not explicitly stated whether or not this would be the case (only that chiefs powers would include administering justice in the Kabaka's courts). As in the Katozi case, the issue was referred to Secretary for State for the Colonies who would reply asserting that the 1902 O-I-C was superior to the Agreement. The High Court held that by the 1902 O-I-C, Her Majesty's Government had made manifest the extent of her jurisdiction in Uganda. Such manifestation was to be regarded as an 'act of state' (as power exercised under the FJA 1890) which was unchallengeable in any British

courts [the O-I-C was thus not subject to the BA]

59

SIKIA
LOW

(iv) In *Mukabwa & Ors v. Mukubira & Ors* (1954), the nomination of 4 persons to the Buganda Lukiiko was challenged since the Kabaka had been deported and in exile in the UK. The case was a disguised challenge of the legality of the deportation under the terms of the Agreement. The court took the view that the agreement had not created contractual relations to which HMG was bound. In other words, the people of Buganda could not invoke the terms of the Agreement as a treaty creating rights and obligations which could be binding on her HMG before her courts ('act of state').

The cases sealed the debate about the superiority of the two instruments with agreement construed in the interests and political convenience of the colonial government. Their significance upon the politics and government in Uganda is the legacy they provided of disregard of constitutional instruments/ideas in our subsequent history.

- *Ndibarema v. Enganzi of Ankole* (1960)

- *Katikiro of Buganda v. AG* (1959)

* * * * *

IV. The Imposition and Operation of Colonial Rule/Administration, 1902-1920

Once the Buganda Agreement had been concluded and the 1902 O-I-C promulgated the colonial government spend the next two decades consolidating its power and rule. Agreements similar to BA had been signed in between the two instruments (Toro- 26/6/1900 and Ankole- 25/10/1901). The administrative structures set up under the kingdom agreements were essentially similar to those in Buganda (i.e. counties, chiefs, native courts and councils, officers of state).

Outside the kingdom areas, in addition to the 1902 O-I-C the main instrument for the consolidation of colonial rule was the *Native Authority Ordinance of 1919* which made provision for the powers and duties of chiefs for the enforcement of authority in their areas of jurisdiction. The 1919 Ordinance:-

- (a) defined the powers, duties and privileges of chiefs which were extremely extensive. The chief was a complete autocrat endowed with powers of an executive (adm - production of food, supply of labour, tax collection), legislative (making bye-laws & regs.) and judicial (adm. justice) nature (maintenance of order, prevention of crime, arrest, seizure & detention of people, etc.) (ss. 3, 5)
- (b) subjected the chiefs to the overall control and supervision of the colonial DC. The ultimate authority was the colonial government. The Dcs had the power to hire and fire chiefs at will and were absolute rulers in own right (concern - 'insubordination, neglect of office than abuse of chiefly powers affecting the natives (s. 13)
- (c) reinforced the office of chiefs with coercive instruments designed to ensure loyalty, payment of taxes, and growth of cash crops on part of the subjects. In this respect, the colonial military and police apparatus paid scant regard to the protection of the people. The role of these traditional instruments was: (i) army to prevent foreign aggression, and (ii) police to protect citizen's lives & property were not used in this regard, and instead designed to suppress the natives.

The basic unit of local administration was divided along ethnic lines as

⁶²

part of the (conscious) policy of ‘divide and rule’. Indeed, efforts by different ethnic communities to create nationalistic (inter-tribal) contacts was minimised by the Colonial government [Law& Pratt]. Outside the king-doms, the mode of



pacification often took a sub-imperialist mode the most prominent in the person of Semei Kakungulu. While a favourite mode of colonial penetration, it served to ethnicise and polarise (& tense) relations between Buganda and these other communities.

Over the two decades of early colonial rule, mechanisms of government and admin. had been set up virtually throughout the protectorate. Those mechanisms duplicated the pattern which had been laid in the BA and 1902 O- I-C. Thus where so many principles of constitutionalism were negated in these early instruments, the same would be the case in the legislation passed during this period to govern the protectorate.

The legacy of this process was to create omnipotent chiefs whose powers permeated virtually all aspects of social lives of their native subjects. This process of localisation of colonial autocracy had even more profound effect on the structures of government and the evolution of the constitutional state (important of ideas at central government but the more so at the local level) - not only at central (national) but also at a local (grass-root) level (**NRM**). For the two decades, the Governor was an absolute at the central (n) level, paralleled by the DC at the district (r) level and the chief at the local (g-r) level. It has been argued that it would have been impossible for the British to have established and consolidated itself as a colonial power and to have recognised the basic rights and freedoms to have survived as a power in Uganda.

Thus despite the reforms that took place from 1920 onwards, the early *modus operandi* set in place by the colonial system of government left a marked impact on the evolution of the const. state in Uganda, and that impact was much more profoundly felt at the local level of government

⁶⁴

(and indeed it took over 8 years to achieve what could be described as a fundamental reform in the



operation of local government in Uganda - NRM). In addition, the powers and privileges and character of authority established in the early colonial period cont'd to exert its influence over the future ways in which government was approached in Uganda. To date we continue to be haunted by the legacy of autocratic government set in place during this period.

* * * * *

V. Uganda Order-in-Council, 1920.

Between 1900 and 1920, the Commissioner's powers were absolute and was largely a period of complete autocracy. The 1920 Order-in-Council introduced significant developments especially as regards the organs of government. The preamble stated, *inter alia*:

Where it is expedite that there should be an Executive Council and ... a Legislative Council, and that the Legislative Council should have power to make ordinances for the peace, order and good governance of all persons and that the same Council should exercise such powers as hereto before have been exercised by the Commissioner.

The main changes introduced by the 1920 Order-in-Council are:

- (i) It formally changed the name of the head of the protectorate from Commissioner to Governor (title would remain till 1962).
- (ii) It created an Executive Council consisting of such members as His M.G. would decide to appoint. The members could be suspended by the

⁶⁶ Governor upon sufficient cause being shown. Upon the suspension of such member, the



Governor was to inform His M.G. who had the option either to confirm or reject the suspension (if confirmed, position became vacant). The ExCo. Would subsequently become the formal executive organ of the colonial government and its Cabinet.⁸ with offices such as of:

(iii) It established a Legislative Council (LegCo.). The LegCo. was made up of the Governor and not less than 2 other persons appointed by (and who served at the pleasure of) His M.G. The LegCo. was for the very first time separate organ of government, although its inclusion of members of the ExCo. in its composition militated against the principle of separation of powers. The powers of the LegCo. were to (a) make laws, (b) constitute the courts and (c) general oversight of admin. of justice and maintenance of peace, order and good government. The LegCo. was chaired by the Governor who had a veto (negating power) on all matters legislated on by the Council. An overall power to respect or reject the veto vested only in His MG. Any bills passed by the LegCo. had to be transmitted to the Governor for assent (consent). Where he refused to assent to the bill, it was then passed on to His MG with the final decision as to whether or not it should be assented to and become law.

(iv) The judicial system put in place under the 1902 O-I-C remained intact.⁹

(v) The O-I-C is significant in Uganda's constitutional history for number of reasons: (a) for the very first time, the basic features of a typical state are seen to take shape. There is more or less clear demarcation of the three arms of government [even though the separateness and independence was defeated] compared to the fused state of powers under the 1902 O-I-C; (b) it was however still clear that it was designed to retain and reinforce

⁶⁸
colonial power and rule,

⁸ The officers in the Cabinet included, *inter alia*, Director of Finance, Director of Medical Services, Director of Agriculture, Attorney-General, etc.

⁹ The East African Court of Appeal was established a year later by the East African Court of Appeal Order-in-Council, 1921.



given the closer relation of the powers of government was still considerate such that there had been not that much of transition in the distribution of power, i.e. it confirmed the executive authority of government while introducing a few cosmetic reforms. A critical look at the membership of the organs created under the O-I-C reveals this.

The official members of the LegCo. were largely drawn from the public service (executive) who were the majority with the unofficial members (non-PS) were a minority (with the Governor's power of veto, these numbers were rendered irrelevant); (c) there were other aspects in the O- I-C which were delimiting - first, only the Governor could call for a meeting and the quorum of both bodies (ExCo. and LegCo.) was three (3) (Governor & 2 ors), second, the Governor had the power to operate independently of both Executive and Legislative Councils (no checks and balances on top of the fusion of powers). In

effect, while the number of people (organs) involved in administration of government, powers of the Governor remained largely intact;

(d) the arrangements continued to exclude both Africans and Asians with the ExCo. and LegCo. manned exclusively by Europeans.

* * * * *

VI. Developments in the Protectorate from 1920 to 1930s - Asian Question and the Bataka-Peasantry Grievances

(a) The Asian Question - Political Representation and Economic Interests.

Between 1920 and 1930s, demands for political participation in the Protectorate government would be made not by the native Africans, but the

⁷⁰

other non-European communities, the Asianse. The Indians had come to East Africa at the close of the 19th century mainly to construct the Uganda Railway, after which most settled in Kenya and Uganda carrying out trade and commerce as



their main occupation. By the 1920s, the Asian community was significant in numbers, and they therefore argued for a political and economic stake in the protectorate. The Asian community pressurised the colonial government for representation in the Legislative Council. This would bear fruit with the nomination in 1926 of the first Indian representative Chinubhai Jethabai Amin to the LegCo. In effect, the first non-European representative on the LegCo. Was Asian rather than African. The Asian question has for long time affected politics and government in Uganda. Further, discriminatory and racist laws and policies led to the dominance of trade and commerce by the Asian community. This was achieved through laws which excluded the Africans from trading within a certain radius of an urban centre – thus the Trading Ordinance 1938 prohibited ‘natives’ from trading within a ten mile radius of an urban centre (cf. Trading (Amend) Ordn. 35/1950 reduced limitation on native trading to one mile distance from municipal boundary). Similarly, Africans were prohibited from ginning cotton and processing coffee and engaging in export- import trade. Thus the foundation of the economy of the protectorate was in the hands of Asians. This led to friction and antagonism against the Indian community such that whenever there was an uprising and riots, the Indian community were a prominent target for anti-colonial sentiments.

The Asians did take advantage of the discriminatory laws and policies and consolidated their economic position, and just like the Europeans looked only to their affairs. In analysing this issue, an Oxford Indian scholar, Ramkrishna Mukerjee, *Problem of Uganda* (1956) made this observation of the relations between Africans and Asians and Europeans:

In Uganda, the Indian community grew as an off-shoot of a poisonous tree because the tree does not need further

sustenance from the off-shoot and the soil has hated it from the start. Therefore



when the present economic growth of the Indians in this country is over, no body will lament their disappearance. The tragedy will however remain that they were forced from the sea by the connivance of those who so clearly effected the anger of the people on this scapegoat.

The Indian community has featured as prominent factor in Uganda's political and economic life both in its colonial and independent periods. The triangle of European-Indian-African relations often saw the Indians identified as part of the repressive colonial rule. Most of the anti-colonial sentiments would be expressed against them, and one can say that the 1972 expulsion represented the culmination of the African dissatisfaction with the Indian community.

(b) The Bataka/Peasantry Grievances over Land Provisions under the 1900 Agreement

The protectorate underwent significant developments between 1900 and 1920 particularly in Buganda. During this period in Buganda, the power of the *mailoland* beneficiaries was on the increase and this was set against the dissatisfaction of those who were dispossessed by the land redistribution under the Buganda Agreement (i.e. the Bataka clan leaders). When Kabaka Chwa II took over from the regents, the Bataka, who had formed a quasi-political association in 1921 (the Bataka Association), appealed to Kabaka to ask the Governor for a review of the agreement. They were joined in this appeal by the peasants who were aggrieved by the rent (*busulu* and *evounjjo*) payable to the mailo-land owners. While Kabaka Chwa II was sympathetic, the Lukiiko (main beneficiaries) rejected the demands.

⁷⁴

Nonetheless, by this time, the colonial government had itself become concerned about: (i) the relations between landlord and tenants in Buganda; (ii) the Bataka grievances which if



unaddressed threatened to become even more problematic to administration of the protectorate; (iii) the overall system of land tenure in Uganda was not delivering efficiently in economic terms.

The colonial government set up a commission of inquiry in 1925 and this resulted in the passage of the *Busullu and Envujjo Laws* 1928 to regulate the rent that was to be paid by the peasants on land in Buganda. The law was promulgated basically because there was no limitation on amount of rent/tribute that the landlord could extract from tenants, and the amount was arbitrarily determined by the landlord. As a result, the landlord could extract as much as possible from tenants. Peasants felt oppressed by the system and the colonial government concluded that this state of affairs was unproductive. The Busullu-Envujjo Law - (a) placed a limit on the amount of busullu and envujjo that a landlord could extract from tenants; (b) guaranteed to Buganda peasants complete & hereditary security of tenure, i.e. they could not simply be evicted for failing to pay rent (allowed for cont'd cultivation of land).

The Busullu-Envujjo Laws represented a revolution in the land relations in Buganda. In social terms, the law created new relations between the landlords and peasants in reducing the arbitrariness and insecurity in those relations. It also reduced the material basis and power of landlords. Economically, the tenants gained security of use of land and this ensured that cash-crop production continued - in effect, the system of capital production benefited from this new legal relations (guarantee of raw materials). For the Bataka who had raised the complaint there was no gain/benefit (in fact the B-E law robbed them of their political support base). The case of the Kabaka was more complex. On the one hand, he was seen as a sympathetic listener to the plight of his people, on the other

⁷⁶
hand however was not actually able to deliver any

SIKIA
Low

reform or solution to their problems/grievances. His prestige and⁷⁷ position was generally undermined that he was to lament thus:

My present position is so precarious that I am no longer the direct ruler of my people. I am beginning to be considered by my own subjects merely as one of the British government paid servants. This is solely due to the fact that I possess no real power over my people. Even the smallest chieftainship is under the control of the provincial commissioner. Any order given whether by local chiefs or the Lukiiko serfs is always looked upon with contempt unless and until it is confirmed by the provincial commissioner.

The B-E law was able for a time being to defuse social and political confusion in the kingdom. However, it failed to address the grievances of the Bataka who would eventually organise the most significant anti-colonial movement. The failure to address their grievances was to lead to increased antagonism and protests.

* * * * *

The Human Face Period of Colonial Rule, 1945- 1960

* * * * *

The Kabaka Crisis of 1953-5 and Its Impact on National Politics in the Protectorate

Sir Andrew Cohen arrived as Governor in January 1952. As a governor, he sought: (a) education and training of Africans administrators; (b) to

SIKIA
Low

of African participation in central government; and (c) placing of local governments on a stable, democratic and viable foundation. Significantly, one of Cohen's first concerns was in regards to Buganda. In March 1953, Sir Cohen issued a joint memorandum with the Kabaka on constitutional development and reform providing for: (i) sixty of eighty-nine *Lukiiko* members were to be elected; (ii) the Kabaka to consult a *Lukiiko* committee before selection of his ministers (these reforms were bound greatly to weaken the entrenched position of the chiefs); (ii) increase of responsibilities of the Buganda Government. Local services such as those involving primary and junior secondary schools, rural hospitals, dispensaries, field services for soil conservation, livestock breeding and disease control were to be transferred to the Buganda Government (as a form of devolution of services)

This devolution of services, rather than being contrary to the promotion of Protectorate unity, was regarded as essential to it. In fact, the reforms of March 1953 were an attempt to forestall a federal system rather than an initial step towards it. In fact, the 1953 memorandum stated expressly that: "The Uganda Protectorate has been and will continue to be developed as a unitary state".¹⁰ Later in 1953, Sir AnneCohen introduced changes in composition of the LegCo. to increase the total number of representatives was increased from sixteen to twenty-eight, with fourteen of these African.

Notably, the 1953 reforms would underline the dependence of colonial government on the loyal co-operation of the Kabaka. With the ascendancy of Mutesa II as Kabaka, his headstrongness was bound to be cause of friction. Educated at Cambridge and already offended that was not treated with honour at the coronation of Queen Elezabeth II in 1952, the reliance on Mutesa to promote colonial government policy was unlikely to be a

⁸⁰
happy circumstance.

¹⁰ *Memorandum on Constitutional Development and Reform in Buganda*, Entebbe, 1953, p. 7.



Nonetheless, he was keen to support the March 1953 reforms. But where the Cohen policy (in its strong belief that Uganda must develop as a unitary state) threatened the tribal loyal-ties, this would have rendered tribal institutions, including the Kabaka-ship to decline in importance.

This factor and concern would spark of the crisis in Buganda that came to be known as the Kabaka Crisis (1953-55).

The Kabaka crisis of 1953 was sparked off by a speech made on 30 June 1953 by the Secretary of State for the Colonies in which he referred to the possibility 'as time goes on of still larger measures of unification and possibly still larger measures of federation of the whole East African territories'.¹¹ This pronouncement caused adverse public reaction within Buganda. In a seriously worded letter, Kabaka Mutesa II argued that the affairs of Buganda be transferred from the Colonial office to the Foreign office and a timetable be prepared for the independence of Buganda:

He (i.e. the Kabaka) and his ministers could no longer feel happy about Buganda's position under the Agreement; apart from the danger of federation, they consider the policy of developing a unified system of government along parliamentary lines must inevitably result in Buganda becoming less and less important in the future.

The Kabaka's (and Buganda's) demands were far more than a challenge to any proposed federation, as it meant a complete break with Governor Sir Cohen's (March 1953) vision of a unitary Uganda state. The Kabaka had reaffirmed in his letter Buganda's separatist tendencies and assertion of a claim to a special

¹¹ *Withdrawal of Recognition from Kabaka Mutesa II of Buganda*, Cmnd. 9028, London, 1953, p. 7.

SIKIA
LOW

status, that had apparently been evident as early as since 1902, for as the Omwanika of the Kingdom was to assert in 1954:

After some two or three years (i.e after 1900) our dependencies were changed into Provinces to rank as being equal as Buganda Province. As regards administration, we are of equal rank but otherwise we the Buganda Kingdom is independent.¹²

On 27 October 1953, the Lukiiko passed a resolution requesting that the Kabaka refuse to name any Baganda to the Legislative Council. This not only endangered the success of the newly reformed Legislative Council but also render a unitary Uganda extremely unlikely. After a series of unsuccessful negotiations, Sir Cohen placed before the Kabaka certain undertakings to which he was required to agree:

- (a) that the Kabaka would positively co-operate in the future progress of Buganda as an integral part of the Uganda protectorate (March 1953 memoarndum);
- (b) that the Kabaka submit the names of Buganda members to the Legislative Council; and
- (c) that the Kabaka co-operate loyally with Her Majesty's Government in the organisation and administration of Buganda in accordance with the 1900 Agreement.

When Kabaka Mutesa II refused to heed to these undertakings, Governor Cohen withdrew recognition from him under article 6 of the Buganda Agreement, declared a state of emergency, and swiftly deported him to the United Kingdom (under Emergency (Deportation & Exclusion) Regs, 1953).

⁸⁴ Following the deportation, with the Lukiiko refusing to select a successor

¹² *Mukwaba & Ors v. Mukubira & Ors*, Civil Case No. 50 of 1954 (1952-6) ULR 74.



Kabaka, the affairs of the kingdom were placed under Regents (by virtue of the Emergency Powers (Regents of Buganda) Regulations, 1953). In a subsequent court case, *Mukwaba & Ors v. Mukubira & Ors* (1954), the exercise of those regency powers were challenged. In the end, the case was a disguised challenge of the validity of the withdrawal of recognition and deportation of the Kabaka. In the case, three of the Kabaka's nominees to the *Lukiiko* (plaintiffs) contested the right of four of the recently nominated *Lukiiko* members (respondents I-IV) to take their place in the *Lukiiko* as they had not been nominated by the Kabaka. The AG argued on the non-justiciability of the issue (which was upheld by the Court). The issues before the court were:

- whether the withdrawal of recognition from the Kabaka was a matter that the courts could inquire into
- whether the subject-matter which was the subject of the dispute was one affecting the 'administration and organisation of the kingdom'
- whether the acts of the Kabaka justified the withdrawal of recognition under the provisions of article 6 of the Agreement
- whether the Regents Regulations of 1953 justified the nomination of the defendants to the *Lukiiko*

The Court held that:

- the withdrawal of recognition was an act of state into which the courts could not validly inquire into
- the subject-matter which was the subject of the dispute (submission of names of Buganda's representative to the LegCo. was not one affecting the 'administration and organisation of the kingdom' within the meaning

of article 6 of the 1900 Agreement. Therefore, no right to withdraw recognition had arisen under article 6 on 30th November 1953.



- the phrase 'Kabaka, chiefs and people' in article 6 of the Agreement had to be read conjunctively, and it had not been shown that either chiefs or people of Buganda had shown signs of disloyalty.
- while the powers to nominate members to the Lukiiko had, prior to the withdrawal of recognition, lain with the Kabaka, the Regents Regulations were effective to give the Regents power to nominate members to the Lukiiko (and to forward laws by the Lukiiko to the Governor for his consent).

The case was essentially dismissed on the ground of non-justiciability, it was a nonetheless, a defence that, according to Low and Pratt, gave the impression that the colonial government 'did not in fact respect the Agreement or feel itself bound by its terms'.¹³

The reaction to the deportation of Mutesa II was nearly unanimous with the Baganda angered by the deportation. Even the UNC which was hostile to traditional rulers joined voices agitating for the Kabaka's return.+ Sir Cohen set up a committee (Hancock Co'tee) to consider (i) constitutional reorganisation in Buganda; (ii) continued participation of Buganda in the protectorate; and (iii) representation of Buganda in the LegCo. (of the Protectorate). At the end of the Namirembe Negotiations, it was agreed that:

- (a) there was a need to replace tribal autocracy with structure of modern representative government;
- (b) the ministers were to be responsible to Lukiiko not to the Kabaka;
- (c) the appointments (and dismissal) of chiefs to be surrendered to Buganda government;

¹³ Low, D.A. & R.C. Pratt, *Buganda and British Overrule: Two Studies* (OUP, 1955), p. 342.

SIKIA
Low

However, it would not be until May 1955 that Mutesa II was allowed to return, with a new Buganda Agreement of 1955 in place. [By the time the Kabaka was deposed and deported, his popularity has suffered mainly as result of the 1940s uprisings in which his chiefs and ministers had been targets. The Kabaka's stand was thus not only a challenge to British policy, but an effort to consolidate loyalties of his own people.] Paradoxically, by taking a stand against the colonial government, Mutesa II was perceived both within and outside Uganda as a nationalist. That heroism was further enhanced by virtue of the fact that in settling the Kabaka crisis and drawing up a new agreement, the Buganda Agreement of 1955, in which the colonial government made a major concession to the Kabaka on the issue which had been the cause of his deportation. Thus in the preamble to the Agreement, it was provided:

Her Majesty's Government has no intention whatsoever of raising the issue of East African federation either at the present time while the local public opinion on this issue remains as it is at the present time of signing and recognises accordingly that the intrusion of the Uganda Protectorate in any such confederation is outside the realm of practical politics at the present time or while public opinion remains as it is.

Her Majesty's Government also undertook to consult with the Government of Buganda on the issue of federation. In this way, the 1955 Agreement put to rest the question of federation, thus upholding the Kabaka's original objection. The main features of the 1955 Agreement were:

(a) It was the constitution for Buganda. The Buganda Government

was transformed, in structure, if not in spirit, into a constitutional monarchy



(as appears in Appendix). The framework was thus established within which the objective of a united, if not unitary, Uganda governed along parliamentary lines was to be pursued.

- (b) It provided for the participation of Buganda in the Legislative Council, with Buganda's representatives elected on a format of *indirect elections* with the Lukiiko acting as an *electoral college*.¹⁴ The composition was not to be altered for six years, i.e. 1955-61.¹⁵

The paradox was that although Mutesa II was projected as a nationalist for standing up to the colonial government, in fact, he was only protecting Buganda's sub-nationalist (federalist) interests. From 1955 onwards, the Kabaka and his Government embarked on a course to ensure protection of the interests of Buganda. The separatist tendencies of Buganda became heightened notwithstanding the formal constitutional arrangements in the 1955 Agreement (e.g.)

- 1958 and 1961 Legislative Council elections - boycott and demand for 'indirect' method of election.
- Formation of the 'Kabaka Yekka' Party at the onset of the Conferences (on self-government).
- Demand for Independent Buganda as a State (secession) - 1960 Memorandum to Her Majesty's Government.
- 'Federal Status' and 'Indirect Elections to National Assembly' at the Lancaster conference, 1961.

⁹²

¹⁴ See especially art. 7 and the Second Schedule (which provided for regulations on elections ancillary to art. 7) of the 1955 Agreement.

¹⁵ cf. *Katikiro of Buganda v. Attorney-General of Uganda* [1959] EA 382.



The Birth of Political Parties in Uganda and Colonial Reforms from 1952 to 1958.

It was at the height of the human face reforms that Uganda's first recognised genuinely nationalist party, the Uganda National Congress (UNC) was set up on 2 March 1952 by Ignatius Musaazi. A Freedom Charter and Manifesto was published. The UNC claimed as its main priorities the realisation of national unity, peace, freedom and equality. Its driving force was the desire to transfer power and authority from the colonialists to indigenous black Africans. [It adopted a slogan 'Cry for Self-Government Now' to give expression to these ideas]. The second political party to be established was the Democratic Party (DP) set up in 1954 (or 1956). The DP was also established as a national party with the main aim (and objective) of addressing what was perceived to be the historical discrimination suffered by peoples of Catholic faith under colonial rule and Mengo administration. This had led to a feeling of marginalisation amongst the Catholic elite. The DP and UNC did nonetheless share a common vision that Buganda's sub-nationalism was incompatible with the notion of a united independent Uganda. This particularly put the DP at logger-heads with the interests of Buganda. The manner in which the two parties approached this issue was to shape the history of the immediate pre-independence era.

The catchword of colonial reforms of this period (1952-58/61) had become 'Africanisation' (i.e. transfer of power into African hands which process was to cover political and socio-economic spheres). Thus the colonial government embarked on the process of recruitment and training and promotion of Africans to higher positions in the civil service. A sum of BPS 200,000 from the East African Development Fund was allocated for scholarships to

⁹⁴
Ugandans to take up studies overseas. By the 1953, plans were in place for establishment of a unified civil service and the principle of equal pay. Further BPS 10 mill.



came from the EADF for purposes of education with 1/5 of this sum allotted to technical education and another BPS 1 mill. set aside for community dev't., with a similar amount (1 mill) for expansion of medical services, while BPS 2 mill. was directed at agriculture. In the political arena, the colonial government expanded the representation of Africans in the Legislative Council. By 1954, the composition of the Legislative Council was as follows:

1	Governor	11	Cross-Benchers*
27	Representatives	9	Ex-Officio
8	Officials		
TOTAL: 56 members			

*The new category of crossbenchers was made up of government nominees allowed to freely debate and express views on any matter but when it came to voting had to vote with the Government, ensuring that on all matters in the house, Government was always able to maintain a majority (of 2 members). In other words, despite the expanded representation, the colonial powers in the state remained intact.

The second major reform in the political arena was the introduction of ministerial position(s) for Africans for the first time, with three Ugandans becoming ministers - (a) Z. Mungonya; (b) D. Nabeta; and (c) A. Kironde. Thus for the first time in the colonial period, Ugandans would participate in government, administration and policy.

The Governor spelt out the functions that the new representatives members from districts and kingdoms would perform as:

⁹⁶

- i. they were to represent the African rural population, and act as the voice of the Africans in articulating their views/grievances
- ii. they were to act as a check on the government and scrutinise policies of the state
- iii. they were to provide leadership for the African community in the Prot. - they were to tour the constituencies and spread understanding of the changes underway in the Prot. and prepare the people for a transition to a new nationalistic system of government.

It can be said that at this point in time, the colonial government had finally come round to accepting that change was inevitable (and the colonial system would not last forever). In spite of all these changes, so many problems remained, amongst of which was:

- (a) full participation of Africans remained largely minimal. The ministerial allotment was nominal (and confined to very insignificant portfolios).
- (b) draconian laws remained (e.g. Deportation Ord.) and practices such as detention without trial, bannings, restrictions on freedom of expression and deportation continued well to the eve of independence (cf. *Mutesa II* (1953), *Re Binasisa* (1959) EA 997).
- (c) discriminatory/differential treatment in hospitals, residence and schools continued right up to (and even after) independence.
- (d) encouragement of factionalism and ethnicisation of political activities by the colonial government, by fostering religious and ethnic concerns.
- (e) African recruitment into the civil service was extremely slow, with high positions still dominated by Europeans and Asians throughout the years up to independence.

- (f) encouragement by the colonial government of (in fact turned a blind eye to) the separatist tendencies growing in Buganda (in aftermath of the Kabaka crisis of 1953-55) leading to an even more factional politics in the run up to independence.

Therefore, the legacy of this period was a pragmatic one. On the one hand, it set the stage for African representation while on the other, it undermined and neglected the gains to be made by a truly nationalistic struggle. The questions are thus posed of the prime colonial actor of this period - Sir Andrew Cohen: (i) Was he a great reformer or ultimately a disaster for Uganda?; (ii) what was the impact of his tenure in constitutional and political history of Uganda?

* * * * *

Movements Towards Independence - Representation and Commissions

With the reforms introduced by Sir Andrew Cohen and the emergence of political parties, the period from 1955-1962 was basically characterised by two features:

- (a) Massive polarisation of political parties and organisations. Political parties were formed almost everyday and often collapsed as soon as they appeared. There was a great interest in their formation, but only two remained strong and steadfast: (a) DP led by Benedicto Kiwanuka, and (b) UPC (a merger of UPU of John Magezi and an Obote-spilnter faction of UNC).
- (b) Increasing entrenchment of the interests of Buganda (which was interested in the preservation of the status quo) and embarked on a

SIKIA
Low

of no compromise with the colonial government (interests of Buganda had been given attention - 1955 Agreement)

By the time of expiration of Sir Cohen's governorship in 1957, there were a number of outstanding problems. The expansion of infrastructure had paradoxically resulted in an increase in expatriate staff. But 1957 is significant for another event for African constitutionalism, with Ghana becoming the first African colony to achieve independence, and thus spurring a world-wide momentum for the decolonisation of the continent.

Against this background, Sir Frederick Crawford as the new Governor was faced with new demands for constitutional reform: (a) elections to the LegCo. should be direct; (b) districts demanded equal treatment with Buganda. In this respect, the new Governor organised for elections at the end of 1957 with the franchise based on eligible voters to be (i) 21 years; (ii) able to read and write in own language, and (iii) owners of freehold or mailo land (if not land-owners, have occupied the land for at least 3 yrs before registration or been regularly paying taxes for at least 2 yrs, or earning income of at least PS 100 a yr, or own property (movable or immovable) of at least PS 400).

The 1958 LegCo. would for the first time in Uganda's constitutional history be made of African representatives who were *directly* elected, even though the franchise was meant for propertied and learned persons. The only parts of the protectorate in which the election was not direct were: (a) Karamoja (b) Ankole (representatives chosen by District Council) [(c) Bugisu (representative nominated by the Governor). Buganda refused to send any representatives to the LegCo. (direct/1955 BA). [The 1958 LegCo. was made up of 5 members from UPC, 1 from DP and 7 independents*]

The constitutional developments of the period following the 1958 elections was characterised by reports of two commissions:

1. 1959 Report of the Uganda Constitutional Committee by JB Wild as its Chairman (referred to as the Wild Report)
2. 1961 Report on Uganda Relationships Commission by Earl of Munster (referred to as the Munster Report)

Together, the commissions and their reports were fundamental for Uganda's constitutional development at this point in time.

(i) Report of the Wild Committee, 1959.

The terms of reference for the Wild Committee were:

- (i) to advise the Protectorate Government and recommend on the form of 'direct elections' on a common roll for representative members in the LegCo. In other words, because previously elections had been segregated along racial lines, the fear was that this would continue and further that Euro and Asians would be given weighted votes. The other concern was that conferring right to vote on Euro and Asians would lead to their demand for citizen rights which the nationalists were opposed to.
- (ii) to advise on the total number of seats to be filled by the electorate
- (iii) to determine the mode of allocation between the different areas of the Protectorate
- (iv) to consider and advice on the question of representation by the non-

Africans

- (v) to advice on the size and composition of the Government



The Committee was nonetheless boycotted by Buganda who refused to avail its views. The recommendations made by the Wild Committee were:

- (i) the next elections to be held in Uganda should be direct in all parts of the protectorate and should take place not later than 1961
- (ii) there should be a common electoral roll which did not confer rights of citizenship (to euro and Asians)
- (iii) the numbers of elected members should be increased and the representation should be as follows: (a) urban areas (4); (b) northern Uganda (15); (c) western Uganda (17); (d) eastern Uganda (20) and (e) Buganda (20) making a total of **76 members**.

The Wild Committee also made certain recommendations outside its mandate, amongst which were:

- (i) apart from the elected members of the LegCo., there should also be specially-elected members chosen by the LegCo. sitting as an 'electoral college' (to elect members representing different interests (6))
- (ii) the party with a clear electoral majority in the elections should form the government (and the losing party would be the official opposition)
- (iii) the ExCo. should become a Council of Ministers with collective respons. to the National assembly and that members of the Council of Ministers should be selected from the elected (NA) members with the exception of 3 positions: (a) Chief Secretary, (b) A-G and (c) Minister for Finance who were to be nominated by the Governor
- (iv) the Governor should have veto powers if necessary

Further, in light of the many views that had been expressed on the form of government that Uganda should adopt, and on the question of the relations between the various peoples of the protectorate, the Committee recommended that before the 1961 elections, a conference should be called to examine the issues and make comprehensive recommendations (on these matters).

(ii) Hardening of Buganda as to its Status and Interests from 1958- Onwards.

While the Wild Committee was making its consultations, Buganda kept on hardening as to its perceived status in the protectorate. With the 1958 boycott, the hardline elements comprising the Kabaka, chiefs and landlords began to map ways of ensuring that Buganda's autonomy was secured. The boycott of elections had itself been designed to put pressure on the colonial government to give in to the demands of the kingdom. A movement began to grow in Buganda with its primary goal to secure the protection of Buganda's interests against the designs of the nationalists. The culmination of the movement's function was the submission in November 1960 of a Memorandum to Her Majesty, the Queen of England stating as follows: (a) British protection over Buganda est. by the 1900 Agreement should be terminated, and (b) as a consequence of the termination of the status, plans should be immediately made for an independent Buganda. Amongst other things, the plan would include: (i) establishment of friendly relations between Buganda and HMG and the exchange of ambassadors and High Commissioners; (ii) Buganda would remain in the Commonwealth and seek membership of the UN; (iii) all powers previously exercised by the Governor to be vested in the Kabaka and his Government.; (iv) Buganda would have its own armed forces with the Kabaka as Commander-in-

Chief; (v) all institutions of learning in Buganda with the exception of Makerere College would fall under Buganda jurisdiction; (vi)



arrangements for the independence of Buganda should be complete by 31 Dec. 1960. On 1 Jan. 1961, the Lukikko declared the independence of Buganda. Although the declaration was never a reality, the message was (very) clear:

Neither the Protectorate Government nor the Nationalist politicians could afford to ignore Buganda in the move to independence and its demands and interests had to be given respect and attention, failure of which the independence sentiment could not be realised.

This was sharply brought home with the preparations for the 1961 elections. Although the colonial government went ahead with the elections, the Kabaka's Government directed its followers not to register for the elections. Indeed by the time regn. was closed, only a handful of mainly DP supporters had actually registered. In effect, Buganda had organised another boycott which was successful. In political terms, the boycott marked the death of DP in Buganda because DP had defied the boycott. Ben Kiwanuka was portrayed as an anti-Buganda Muganda and as a man who did not respect the Kabaka. It was not helped that Ben Kiwanuka was also of Catholic faith. [The propaganda that followed the boycott was that the Catholics wanted to take over the protectorate]. On the other hand, UPC gained from the boycott because they had decided not to fill in candidates in Buganda. The Buganda Government therefore felt that there was a possibility of good relations with UPC's Apollo M. Obote, and marked the onset of the UPC-Buganda alliance (later cemented during Lancaster conf.)

(iii) Report of the Munster Commission, 1961.

Set up in 1960 by the Secretary for State for the Colonies, the Report of the Uganda Relationship Commission was given by the Earl of Munster. Its basic terms of reference were to consider the official form of government most appropriate for Uganda and the relations between the central government and other authorities in Uganda (particularly kingdoms). The Commission was supposed to be guided by the following:

- (i) HM Govt's decision (resolution) to grant Uganda independence through appropriate stages
- (ii) development of stable institutions of government (for Uganda)
- (iii) incorporation of specific circumstances and needs of peoples of Uganda as they become independent
- (iv) consideration of the desire of peoples of Uganda to preserve existing institutions and customs as well as to uphold the status and dignity of their kings and rulers

The Commission was supposed to bear in mind the special relations between HM Government and the kingdoms with whom agreements had been made in the early 1900s. The Commission had to make sure that all these aspects were accommodated.

Thus the 1961 Munster Commission report and together with the 1959 Wild Committee report would provide the framework for the **two** constitutional conferences, of which the first was held in September 1961 (at Lancaster) and the second in June 1962 (at Malborough).

The Munster Commission made several recommendations:

107



- (i) as regards trends for secession, it was unacceptable to allow Buganda to separate from the rest of the protectorate. The Protectorate that had been in existence since 1894 must continue till Buganda has reconciled itself with the rest of Uganda
- (ii) the relations of Buganda and Uganda should be a federal one
- (iii) the central government should have power over foreign affairs, armed forces and police. Buganda government should have power over the institution of the Kabaka, Lukiiko and matters governing traditional aspects of the kingdom. Any residual powers (not allotted to either of the two) should be shared, but the central government should have the overriding power in the final analysis
- (iv) Buganda should be given a guarantee that any laws made by the central government which would affect the Kabakaship and Buganda's other exclusive interests would be of no effect unless agreed to by the Lukiiko. Such a guarantee would be by law enforceable by courts and Buganda should have the deciding voice in determining the form of guarantee
- (v) the Kabaka should withdraw from politics and become a genuine const. monarch to perform just ceremonial non-executive functions
- (vi) the Lukikko of Buganda should be directly elected. It would act as *electoral college* for the 20 seats of Buganda's representatives to the National Assembly ('indirect' elections) (this would be very *controversial* during the constitutional conferences)
- (vii) voting in the future would be by universal adult suffrage

With regard to the character of Government, the Commission stated that Uganda should be a single democratic state with a strong central government.

Within this state, Buganda should stand in federal relations while the
other 3

109



kingdoms would be in semi-federal relations. With respect to the Head of State, until Uganda attained independence, it would be the Governor representing H M the Queen, thereafter it was appropriate to appoint a Governor-General to allow time for debate on the Head of State. Further, the Head of State would exercise prerogative powers of the Crown - summon and dissolve parliament (NA), make treaties, etc.

The legislature was to become the National Assembly. Any amendments to the constitution upon independence were to be passed by 2/3 majority of the National Assembly. The courts of law would have the power to declare the constitutional legislation invalid.

In conclusion, the Wild and Munster reports laid out the broad parameters for the debate on the constitution for independent Uganda. In fact, in certain respects, the two reports foreclosed debate, while in others, they opened up issues to incorporate new dimensions. Indeed, it can be said particularly of the Munster report that it provided a draft constitutional report for Uganda. At the opening of the Lancaster conference in September 1961, the Secretary of State (for the Colonies) expressed the view that the Munster Report was a valid and useful foundation. Further, he gave the view that as far as relations with Buganda were concerned, the Munster proposals were so far the best if not the only way of securing the co-operation of the people of Buganda in the creation of an independent Uganda.

Constitutional Developments in the Uganda Protectorate from 1961-62ⁱⁱⁱ

First Constitutional Conference at Lancaster (Sept-Oct. 1961)

The first constitutional conference was held in Sept.- 8 Oct. 1961. There were delegates from HM Government, the Governor of Uganda in his own capacity, the Uganda Government led by Ben Kiwanuka (as Chief Minister), the opposition UPC, members of the kingdoms, districts and urban authorities. The stakes at the conference were extremely high. Each of those attending were desirous of ensuring that its interests were fully accommodated especially as the primary objective of the conference was the promulgation of a constitution providing for internal self-government. [In working out the provisions of the constitution, the objective was to secure that a suitable framework for Buganda's interests was in place].

The conference emerged with many recommendations with the most difficult issue being the relations between the different entities of the protectorate and especially the question of Buganda. In fact, in two instances at Lancaster, the discussions broke down due to these relations in particular are regards (a) the issue of the 'lost counties', and (b) issue of elections as to whether they should be 'direct'. The background to the latter was clear. In 1961, the Buganda Government had boycotted the LegCo. elections for among other things the decision that the elections be 'direct' (through the mechanism of indirect elections Buganda would be able to secure representation by candidates who would completely be loyal and dedicated to the her interests). The Uganda government led by DP leader, Ben Kiwanuka, strongly opposed this suggestion by the Munster Commission arguing that indirect elections were against the franchise of the people of Buganda. In a very lengthy discussion, Ben Kiwanuka noted that not only was the provision

SIKIA
Low

unpopular government, but that it was only intended to appease the Kabaka and Buganda delegation. In regard to the 'lost counties' issue, the matter concerned the 7 counties then in north-west Buganda (which had been transferred to Buganda as a reward for her assistance in vanquishing Bunyoro). The matter had always been of concern to Bunyoro because the majority of the populace in the counties were Banyoro. As far as Bunyoro was concerned, it wanted a return of all the 7 counties. The matter was not resolved and the Bunyoro delegation walked out. Finally, the delegates were informed that a commission of the Privy Council would be appointed to advise on how the issue could be resolved. In Jan. 1962, a commission was appointed with Lord Molson as its Chairman to investigate and make recommendations on the matter.

Apart from these contentious issues, the conference was able to decide most of the issues involving the constitutional make-up - the executive, legislature, and judiciary and the operation of these organs. The conference ended on 8 Oct. 1961 with an agreement that independence would be granted exactly a year later on 9 Oct. 1962. Aside the constitutional matters that were resolved, the conference also produced several interesting dev'ts. The most important was the alliance ('marriage of convenience') between UPC and Buganda. The merger came mainly because UPC had supported the kingdom on the issue of 'indirect' elections leading it to believe that it had UPC on its side. Stemming from this dev't was the realisation by Buganda that the only way to secure its interests would be the creation of a political movement devoted to promotion of such interests. The movement was born and came to be known as 'Kabaka Yekka' (King Alone). This KY movement would be mobilised for the next elections in 1962, with Buganda this time fully participating, and did in effect register success for UPC with 37 to DP's

¹¹⁴
24 and KY's 21. UPC and KY would form a

SIKIA
LOW

coalition government which guaranteed UPC a firm majority in the National Assembly.

Second Constitutional Conference at Malborough (June 1962).

The second constitutional conference opened on 2 June 1962 under the Secretary of State (Maulding) with the Governor of Uganda, delegations from UK, representatives of kingdoms, districts, urban authorities, and the opposition DP. The work of the conference was mainly done by three committee - (i) the Constitutional committee; (ii) citizenship committee, and (iii) fiscal committee (deal with matters of taxation & finance). By this time, the Mouson Commn. had submitted its report and a new constitution had been prepared on 1 Mar. 1962. Nonetheless, the matters that had not been settled at Lancaster were still outstanding, that is:

- (i) status of the three other kingdoms- Ankole, Bunyoro and Toro. Only the question of Buganda had been addressed. These too wanted a federal status. They were also accompanied by delegation from Busoga (led by the Kyabazinga) who argued that they too had traditional institutions and so should similarly get federal status
- (ii) the 'lost counties' issue. The Mouson commission had visited from Jan- May 1962 to make recommendations on the counties (the seven were Buyaga, Bugangaizi, Buruli, Bulemezi, Bugerere, Buwekula and Ssinga) The Commission recommended that two of these counties (Buyaga & Bugangaizi) be transferred to Bunyoro before independence with the 5 remaining with Buganda.

At the Malborough House, outstanding matters including the framework of an independent Uganda were generally settled. The problematic issue

SIKIA
Low

remain however that of the 'lost counties'. The Bunyoro delegation argued that there was no reason why only two of these counties should be returned. On the other hand, the Buganda delegation argued that the peoples of these counties were settled, happy with Buganda, and there was no need therefore to upset the state of affairs. This caused a stalemate and because of this, the Governor was compelled to take a stand on the issue as:

- (i) there would be no immediate transfer of territory;
- (ii) administration of the two counties (in qn.) would be transferred to the central government
- (iii) after not less than 3 years from date of transfer, the NA would decide on a date for holding of a referendum for the two counties in which the electorate would be asked to make a choice amongst:- (a) becoming part of Buganda under admn. of the Kabaka's government; (b) becoming part of Bunyoro under the Omukama; (c) becoming entirely new district under admn. of the central government.

The referendum would in effect be the deciding factor on the fate of these counties. The Prime Minister Obote accepted responsibility for administering the referendum. On the last day of the conference, the delegation of Bunyoro declared that the decision made was unacceptable and withdrew. The report was therefore drafted in their absence. Although Buganda did not withdraw, it also declared that the decision was unacceptable. In effect, the lost counties issue remained outstanding. The conference ended on 29 June 1962 with the various parties (delegations) agreeing that the decisions that had been made provided a firm foundation for progress towards independence. The legal instruments that gave effect to the Malborough decisions were:

1. Independence Act of August 1962 which stipulated that Uganda would become independent on 9 Oct. 1962.
2. Uganda Independence Order-in-Council of 2 Oct. 1962 which had the Independence Constitution appended as a Schedule.

Thus on 9 Oct. 1962, the Union Jack was lowered for the last time and the new flag for the independence of Uganda was raised. The 1962 Constitution had been subject of debate, with some politicians arguing that it emphasised divisions, parochialism at the expense of national unity. Scholars like Prof. Kanyeihamba consider the 1962 constitution as having hampered the power of government by placing many obstacles in its path. Others have argued that the constitution did not go far enough in decentralising power and authority and that its problem was too much power in central government.

Question: Given the nature of Uganda's history from 1894-1961, the 1962 constitution was only the inevitable product and expression of that history. Discuss.

INDEPENDENT UGANDA - 'GRAPPLING' WITH THE CONSTITUTION (1992- 1965)

1. The Structures and Arrangements under the 1962 Constitution

The promulgation of the 1962 Constitution was a landmark event in Uganda constitutional history. For the first time, the framework of government was to be undertaken within specific rules that attempted to observe the basic principles of constitutionalism (including separation of powers, independence of the judiciary, human rights, etc.) Nevertheless, the constitutional framework together with the political situation obtaining in Uganda at the onset of independence meant that a number of problems remained. The major of these were:

1. The Question of the Head of State - Not Addressed by the Constitution
2. The Question of the Federal-Unitary Relations between Buganda and Uganda
3. The Question of the Relations between Buganda and Bunyoro over the 'Lost Counties'
4. Overall Problems of Governance - its Mode and Relations between the Government and Governed (cf. *Lyagoba*)
5. Opportunistic Tendencies on the Part of Personalities at the Helm of Government and Political Power

Invariably, there were other minor problems but these were the most outstanding.

1. The Independence Constitution had maintained the Queen as the Head

of State and so necessitated the determination of a proper Head of State for an



independent Uganda. There arose different opinions between the parties, kingdoms, and the masses, [with the matter eventually bowing down to two major concerns – while the KY and the Kingdom of Buganda posed the question as to whether a commoner could rule over royalty, UPC asked whether the Baganda could be trusted.]

The broad membership of UPC opposed the idea that the party should not provide the Head of State. However, after several discussions (and debate), it was resolved to give the office of the Head of State to one of the traditional rulers (and specifically to Kabaka Mutesa II). When the debate was thus later conducted in the National Assembly, the majority vote was in favour of a traditional ruler as being the only person eligible to be a constitutional Head of State. Thus by the *Constitution of Uganda (First Amendment) Act*, No. 61 of 1963, it was stipulated that the President and Vice-President of Uganda would be elected for period of 5 years by the National Assembly and further that only traditional rulers would be eligible for the offices. Therefore, on 4 October 1963, Sir Edward Frederick Mutesa II (the Kabaka of Buganda) and Sir William Nadiope (the Kyabazinga of Busoga) became the first President and Vice-President of independent Uganda respectively.¹⁶

Rather than solving the *lacuna* in the constitutional framework, the question only took new dimensions and bred new problems. Although the office was largely formal and non-executive (constitutional monarch in a Westminster-styled government), tensions would begin to surface in the relations between the figure-head Head of State and the Prime Minister (What did the formality mean? Who had precedence as between the HOS and PM? Who could appear on TV to address the nation? Whether Mutesa II should be allowed the police band at his birthday?, etc.). But perhaps more

¹²²
significant (as opposed to these

¹⁶ cf. *Jowett Lyagoba v. Bakasonga & Ors* [1963] EA 57; Busoga Validation Act, No. 9 of 1963.



rather petty concerns) was question of allegiance of Mutesa II to both offices of HOS and KOB (test would come during referendum on the 'lost counties'). The situation was made worse because the HOS (Mutesa) and PM (Obote) could not stand each other (marriage of convenience turned sour). The tension between these two personalities was nonetheless underlied by the broader question of Buganda position in (relations to) the rest of Uganda (viz. Kabaka Mutesa's federalism as opposed to Prime Minister Obote's perceived unitarism).

2. The question of Buganda's position in (relation to) Uganda is without doubt traceable to the period of run-up to independence (Munster Report 1961 and the conferences). The federal status of Buganda as a major aspect of the 1962 constitution created a situation in which the demarcations of authority and jurisdiction become all too confused. The potential for tensions to flare-up was always manifest in particular as regards matters of jurisdiction (NA law, courts, etc) and finance and revenue (schedule to constitution)

cf. *Kabaka's Government & Anor v. Attorney-General of Uganda & Anor*, PC App. No. 56 of 1964; *Attorney-General of Uganda v. Kabaka's Government* [1965] EA 393 - Coming up in 1964-65, in the wake of the lost counties referendum a year earlier (1963) with disastrous effect upon the Kabaka's status (& relations with Obote), the case highlighted how 'fragile' the constitutional framework of the 1962 constitution (on the federal relations of Buganda in a unitary Uganda) was. If the lost counties largely marked the end of the UPC-KY alliance (coalition), this case damned the 1962 constitutional arrangements and spelled its doom (which would turn out to be only a year later in 1966). The case involved the distribution of finances between the Central Government and Buganda Government, and the question of how much in a block grant Buganda was entitled from

the Central Government.. The fact that the matter

SIKIA
LOW

wound up in court and could not be amicably resolved between the two parties demonstrates how hostile their relations had become.

3. The question of the 'lost counties' had been the controversy of the second constitutional conference (Malborough 1962), but the underlying tensions that underpinned the matter remained and simmered throughout the early years of independence. By 1961, *Drum Magazine* depicted that at least 3/4 of the people in Bugangayizi were Banyoro notwithstanding 60 years of Buganda rule. In Buyaga, the situation was even much more striking with 15 Banyoro for every Muganda. Even Sir Tito Winyi (Omukama of Bunyoro) maintained that the case for the restoration of these two counties to his kingdom could not be logically denied. The tense relations between the two kingdoms and the aspirations of the peoples of the counties would be underpinned by the two developments in 1963 and 1964.

Joseph Kazaraine v. The Lukiiko (1963) EA 472. The applicant Mr Kazaraine was convicted for inciting the people of Buyaga and Bugangayizi not to pay taxes to the Kabaka's Govt and for obstructing chiefs from carrying out their rightful duties of revenue collection. The issue was to whom the jurisdiction over the 2 counties was vested as between the Central Government and Buganda Government. Reference may be made to the Second Constitutional Conference which had directed that the 2 counties should vest in the Central Govt and so it would obviously follow that the latter was entitled to exercise jurisdiction over the territory. The Court would let Buganda exercise jurisdiction more out it seems of a desire not to upset the political set-up given the volatile character of the matter, and in any event a referendum was scheduled that would resolve the issue. *Kazaraine's case* is important for a number of reasons - (i) it under-pinned the tension in the relations between Buganda and the 2 counties; (ii) it

portrayed the confusion which the 1962

SIKIA
LOW

constitution had brought about with respect to an issue that was not resolved at the runup to independence; (iii) it demonstrated the problems which the fatal arrangements of the 1962 constitution.

Referendum on the Lost Counties, 1964. Between 1962-64, the Kabaka's Government had laboured to justify why the counties should remain in Buganda - (i) the undesirability of up-setting the admin. arrangements that had existed for such a long period; (ii) the endowment of Buganda than Bunyoro that the 2 counties would benefit more under Buganda; (iii) the benevolence and non-sectarianism which had characterised the Kabaka's rule;

(iv) the development of the counties had been secured under Buganda's rule. Further, there were concerns that a change of admn. would adversely affect Baganda land-owners. The Central Government nonetheless went ahead with the referendum which was held on 4 Nov. 1964. The 2 counties overwhelmingly voted to return to Bunyoro. Kabaka Mutesa II as President was supposed to sign the instr. (memo) confirming transfer but refused to do so. Obote as the Prime Minister put the issue before the National Assembly and through the Constitution of Uganda (Third Amendment) Act, No. 36 of 1964, the territorial transfer was confirmed. [The Buganda Government appealed to both the High Court and Privy Council and lost.] The referendum was the 'final nail' in the 'UPC-KY coffin' marking the death of the coalition.

There was widespread hostility in Buganda which would gain magnitude. For Obote and UPC, the referendum was a boost, and showed that they could no longer be held at ransom to Buganda's demands. Several KY MPs were in fact persuaded to cross to UPC undermining the strength of KY. Similarly, several members of the opposition DP also crossed over

and the biggest coup in this regard was Basil Bataringaya (who became Minister for Internal Affairs). UPC was thus stronger than ever to enable the Government to control the NA.



4. The problem of governance and autocratic tendencies would become a feature of the early years of independence. The pattern of leadership during the colonial period had emphasised the omnipotence of the ruler and the insubordination of the ruled. That legacy would manifest itself after attainment of independence. The postindependence rulers merely stepped into the shoes of their predecessors leading to a new form of autocratic rule. Apolo M Obote exemplified this kind of new-African leader such that even from the earliest days of independence autocratic tendencies had gradually begun to creep into government both in terms of *disrespect for the constitution* and the *exercise of excessive powers*. In this regard, where the constitution presented obstacles, it was then simply bypassed and this tendency was illustrated in a number of cases.

cf. *Jowett Lyagoba v. Bakasonga & Ors* [1963] EA 57. The case pertained to the election of the councillors of the Busoga (Lukiiko) and the legality in particular of the election of 6 specially-elected members of the Council. The issue at hand was whether a resolution by the Council and the endorsement by the Governor of Buganda* conformed with the provisions of the 1962 constitution. The matter also touched on the legality of Sir William Nadiope's election as Kyabazinga. The court upheld the challenge declaring that the various persons were un-lawfully elected and would have to vacate office.

* * * * *

2. The Kabaka (Uganda) Crisis of 1966 and the Promulgation of the 1966 and 1967 Constitutions

a. The Immediate Causes and Events Underlying the 1966 Uganda Crisis

On 4 February 1966, Prime Minister Apolo Obote was on a tour in Northern Uganda when Daudi Ochieng, an Acholi KY MP member, moved a motion in Parliament demanding that there should be an inquiry into allegations that the then Deputy commander of the army, Colonel Idi Amin and two cabinet ministers Adoko Nekyon and Felix Onama and the PM were involved in the illegal acquisition of gold in the then Congo-Kinshasha (later Zaire). It was alleged that the purpose of the smuggling of the gold was to aid the Sudanese *Anyanya* rebels (present-day SPLA) fighting a war of liberation against the government in the Northern Sudan. On 9 February 1966 (5 days later), Brigadier Shaban Opolot, the then commander of the army proposed the arrest of Idi Amin, but the plan was not executed. On 15 February 1966, following the PM's return to Kampala, he set up a commission of inquiry headed by a judge of the EACA and assisted by a judge each from Kenya and Tanzania, with William Wako Wambuzi (as Secretary), but its report would remain unpublished until Amin came to power (in 1971). On 22 February 1966, one week after setting up the commission, PM Obote announced the suspension of the 1962 constitution on the grounds that the country had lost stability and certain people (whom he did not name) were plotting to overthrow the legal government using foreigners. On the same day in the afternoon, during a cabinet meeting in Entebbe, 5 cabinet ministers were arrested and detained. The army commander was dismissed and replaced with Colonel Idi Amin. On 2 March 1966, by way of a special declaration, the offices of President and Vice-President were terminated with the PM

assuning all powers of government on the advice and consent of the¹³¹
cabinet. The incumbent President, Kabaka



Mutesa II, protested strongly and Obote for the first time directly accused him of a plot to overthrow the lawful government of Uganda. On 16 April 1966, the 1962 Independence Constitution was declared abolished, and in its place promulgated the 1966 Interim Constitution (passed by a vote of 65 in favour to 5 against). This interim constitution is known as the *pepion-hole* constitution since members were assembled in Parliament with troops surrounding the Parliamentary buildings, and Obote forced them to sign and agree to its promulgation. The members only found copies of it later in their pepion-holes.

The salient features of the 1966 'interim' constitution were:- (a) Uganda was declared a republic; (b) Buganda government was deprived of privileges accorded to her by the 1962 Constitution; (c) Parliament was vested with more powers as was the Prime Minister. Otherwise, the provisions basically remained the same.

At the end on April 1966, a stormy session at Bulange (Parliamentary seat of Buganda), the Lukiiko resolved not to obey the 1966 constitution and passed a resolution demanding that the central government withdraw itself from Buganda soil by 30 May 1966. It is also alleged that the preparations were made for the secession of Buganda. On 23 May 1966 several chiefs suspected of influencing the decision of the Lukiiko were arrested and disturbances were prevalent throughout the kingdom. On the same day (23 May), the Minister of Internal Affairs promulgated the emergency regulations which *inter alia* (i) prohibited the holding of meetings and (consultations); (ii) prevented the publication of alarming reports; (iii) imposed several draconian measures for the purpose of extraction of information from suspects; (iv) granted to the police powers of search, arrest and detention (with conditions of deportation and exclusion).

On the night of 23 May 1966 a dawn to dusk curfew was declared in Buganda with the warning that persons in uniform not authorised to be so would be arrested. At dawn of 24 May 1966, soldiers of the Uganda Army led by the newly-appointed army commander Idi Amin stormed the Kabaka's palace at Mengo and after a battle, the Kabak fled into exile in the UK via Burundi. The 1966 Uganda (Kabaka) crisis was thus terminated with the military invasion of the palace and the eventual abolition of the kingdoms. The final seal on the crisis was the passing of the *Pension Act* under which all former traditional rulers with exception of Kabaka Mutesa II were paid pensions and provision made for the schooling of their children. Mutesa II died in exile in 1969.

b. The Impact of the 1966 Uganda (Kabaka) Crisis

1. The most prominent impact is with regard to the introduction of elements of militarism into the realm of politics and government in independent Uganda. The introduction for the first time gave to the military forces an inordinate degree of direct influence in Uganda's constitutional history. This would also breed a culture of resolving conflicts through military force rather than by peaceful means. This would characterise the politics in Uganda till the present day (e.g. Amin, UNLF, NRA, etc.). In other words, our political leaders are much more comfortable resorting to force than political means to resolving conflicts. The legacy in the Latin Maxim *inter armes leges silent* ('in the face of arms, the law is silent (does not speak)') is the more apparent in our history. In effect, the military is incompatible with the law (cf. *ex parte Matovu* (1966) EA)

2. The second impact related to the operation of the judiciary (courts) with

respect to pertinent constitutional issues. The crisis ushered in a period of judicial impotence (with interferences from the executive in the independence



of the courts) as demonstrated in a number of cases. The more profound of these were the *Ibingira cases I & II* and *ex parte Matovu case* both decided in 1966.

i. *Ibingira & Others v. Uganda* [1966] EA 305 (No. I)

The case No. 1 dealt with the legality of the Deportation Ord., Cap. 46 for being inconsistent with the 1962 Constitution since s. 19(1)(j) provided that: 'No person shall be deprived of his liberty save as may be necessary in the execution of lawful orders'. The applicants had been held in custody pending a decision by the Minister concerned as to whether deportation order should be made against them under the DO. On application for a writ of *habeas corpus* their detention was challenged on grounds of inconsistency with the constn. The High Court dismissed the application arguing that the Ord. fell squarely within s. 19(1)(j) and that it did not infringe any other relevant provisions of the constn. On appeal to the EACA, applicant's counsel argued that the HC had erred in looking at s. 19 to the exclusion of s. 28 (dealing with protected persons). That s. 19 presupposed a lawful order which was not the case unless art. 28 was complied with. The State Attorney argued that by virtue of s. 19, the Ord. was 'authorised by law' because it was made by a statutory power. That the *lawful orders* authorised by s. 19(1) in paras (a)-(d) related to judicial proceedings while paras (e)-(j) related to administrative actions, and it did not specify the manner in which the liberty of the individual may be restricted or taken away. The argument on behalf of the state ultimately rested on the proposition that s. 19 authorised legislation for the restriction of movement and residence of the individual. In the view of the EACA, this was not so, and it held that all para. (j) of s. 19(1) did was to provide that lawful orders made under statute restricting *freedom of movement* (s. 22) shall not constitute violations of the *right*

to personal liberty (s. 19). Invariably, the question before



the court was whether the DO was inconsistent with the provisions of the 1962 constn. with respect to the fundamental *rights and freedoms* of the individual. It should be noted that the appellants were held in custody pending the Min's decision whether an order for deportation should be made. Whatever that decision might eventually be, the appellants could properly be held in custody if a valid order was capable of being made. If however the DO was void for inconsistency and consequently, a valid order could not be made under it, then clearly, the detention while the exercise of a *non-existent power* was being considered would be unlawful. The proper section of the constn. was clearly s. 28 and as the DO as it stood did not fall within any paras. of the section at least in so far as purported to affect citizens of Uganda, it contravened the section and was in violation of the freedom of movement. The Court held that 'no lawful order could be made against a citizen of Uganda under the O., and since any order that might be made would be unlawful, para. (j) of s. 19 (1) could have no application. The appeal was allowed, and the proceedings were remitted to the HC to order the release of the appellants.

ii. *Ibingira & Others v. Uganda* [1966] EA 445 (No. 2).

This second case (No. 2) came in the wake of the decision of the EACA in No. 1 to allow a writ of *habeas corpus* to the applicants, and direction to the HC to order their release. The 5 applicants (ministers and citizens of Uganda) were transported from Karamoja where they had been detained to be produced before the HC. Upon their arrival at Entebbe, the PS, Ministry of Internal Affairs informed them that they were free by virtue of court orders, but on leaving the airport they were issued with detention orders under the Emergency Powers (Detention) Regs., (SI 65/1966) which applied only within Buganda. The applications brought in form of

summons supported by affidavits and numbered as Misc. Crim. Appls.
and made on their behalf to the HC claimed



that the further detention was unlawful and that the Regs. were *ultra vires* the Emergency Powers Act (8/63) and art. 30(5) of the 1966 Constitution.

The summons were dismissed by the judge holding that the government had not acted in bad faith in bringing the appellants to Entebbe and releasing them (before taking them before the court). Further, the judge held that it was *irrelevant* whether the appellants had been illegally arrested and brought into Buganda (where a state of emergency had been declared).

The appellants appealed on grounds that the judge had erred in not holding that the appellants were brought to Entebbe in bad faith. That in any event, it was not open, having regard to the orders of the EACA ordering their immediate release, for the government to bring them from wherever they were against their will into Buganda and validly detain them. The Court held:

- The appellants were already in detention when arrangements were made for them to be brought to Buganda and the arrangements were made not with the object of creating a reason for further detention but with the object of complying with what was properly assumed to be the order of court.
- The court saw absolutely no reason to differ from the finding of Justice Keating that the authorities had not acted in bad faith in bringing the appellants to Entebbe before releasing them. The appellants were fortuitously within the area which enabled the minister to issue detention orders under which the detention regs. after their release from their former detention
- The action of Justice Faud under the previous decision of the EACA in

ordering the immediate release of the applicants without requiring them to be produced before the court was *erroneous*.

-



Implications and Significance of the *Ibingira* decisions.

The cases were decided in the teeth of the 1966 crisis and illustrated a number of dimensions of the crisis as well as reactions to it. At the time of their initial arrest, the 1962 constn was still in force, and the first case was a challenge of their custody pending deportation (under the DO a relic of colonialism) as in contravention of the 1962 constn. The EACA upheld the assertion on unlawfulness of the detentions as being in violation of the right to personal liberty and freedom of movement.

The decision in the first case led to the outrage of the state with the AG Binaisa arguing that no dignified court of law could have made such a decision. Feeling bound by the decision, the government nonetheless brought them from their places of custody into Buganda, set them free only to serve them with fresh detention orders signed by the MIA made under the recently passed Emergency Powers (Detention) regs. which applied only to Buganda. They were whisked off to a ranch in the lake where they would spend five years in detention. The government did not stop at this as it went on to pass the Deportation Validation Act (within the space of 24 hours). The Act specified that the 5 detainees were not to be compensated the legal costs to be paid by the government to the detainees for any action that they had brought or might bring against the government for their illegal detention, notwithstanding any order to the contrary by the court. In other words, the government was basically through leg nullifying and effectively reversed the decision of court. The challenge of their second detention in the second case, and the summary dismissal of their application by the EACA represents one of the worst and obnoxious decisions of the court as:- (i) there was no reference made to any of the constitutional provisions (1962 or 1966) as to the legality of the detention;

¹⁴²

(ii) there was apparent wholesome acceptance of the validity of the Emergency

SIKIA
Low

Powers (Detention) regs; (iii) there was no attempt to address/question the Deportation Validation Act as a direct assault on the judiciary (independence).

At the end of 1966, the second case represented the genesis of the undermining the judiciary and marked the seal of the executive omnipotence over judicial power.

iii. *Uganda v. Commissioner of Prisons, ex parte Matovu* [1966] EA 514

This is perhaps the most significant constitutional case of the period, as -

- (a) it is Uganda's first genuinely constitutional case in the sense that it was brought as a constitutional reference;
- (b) it attempted to provide a legal interpretation of the phenomenon of revolution, and has been internationally recognised (and referred to);
- (c) its influence on Uganda's const history and politics has been extremely profound – its ghost has hovered over the politics and government in Uganda since then.¹⁷

The case involved Michael Matovu who was arrested on 22 May 1966 at the height of the crisis, and detained for one day before the emergency regulations came into force. An application was instituted on behalf of Matovu for a writ of *habeas corpus* which also challenged the lawfulness of his detention under the regs. The case would eventually lead to a challenge of the validity of the 1966 constitution. In the end, it posed questions as to the whether events leading to the promulgation of the 1966 const were political (outside the court's jurisdiction) and whether the const was a

product of a ‘successful revolution’?

¹⁷ cf. *Lutakome Kayira & Ors v. Edward Rugumayo & Ors*, Const. Case No. 1 of 1979; *E.F. Ssempebwa v. Attorney-General*, Const. Case No. 1 of 1986; *Dr. James Rwanyarare & Anor v. Attorney-General*, Const. Case No. 1 of 1994



The Court successfully dealt with the procedural issues. It also investigated the question of its own status and power under the new constitution. Its conclusion was that the courts were duty bound to uphold the constitution as by law established and that they had taken a judicial oath under the constitution to preserve, protect and defend the constitution, and they could not do this if the constitution was illegal. So this necessitated the court to first of all examine the legality of the 1966 constitution (and circumstances surrounding its promulgation). The authority that the court would rely for its decision was the theory of Austrian professor, Hans Kelsen in his *General Theory of the State* together with a number of cases in particular those decided in Pakistan (which had applied the theory) (*State v. Dosso*). Professor Kelsen was a well-known theorist on the legality of revolutions and his basic theory concerned political change through illegitimate means, and can be summed up in these terms:

If government is removed in a manner not contemplated by law and a new ruler assumes *effective control* of the country, the edicts (pronouncements) are valid because the old legal order has disappeared and been replaced by a new one which provides validity to the norms of the old order.

Professor Kelsen described the process as the replacement of the grund-norm (being the foundation-basis-pillars) of the old system and the elements that have to be present are: (a) destruction of the old legal system and its replacement by a new one – the process of the replacement being done in an illegal and un contemplated manner; (b) the change that brings this about is ‘efficacious’, i.e. the people by and large obey the new order (even if there are few pockets of opposition); and (c) other states of the

international community recognise the revolution as having taken place.



The case demonstrated the erosion of judicial independence – as it demonstrated the judiciary unwilling to confront the executive and force it to honour the basic tenets of const. The decision in the case was particularly of concern since it revolved around the question of personal liberty (freedom of the individual). The case's most serious flaw is its failure to grant *habeas corpus* on basis of detention regns. that had clearly questionable foundations. In so doing, the individual was sacrificed in interests of upholding law and order as the executive's objective. But the case has a more profound and enduring legacy in respect of both the moral and legal dimensions – reliance on Kelsen's theory implied that the judiciary (court) sanctioned the emergence of militarism in Uganda's politics. By considering that the most significant factor in determining a revolution was its *effectiveness*, the court sanctioned *extra-constitutional* routes to government power as legitimate. In other words it conferred legitimacy to an otherwise illegitimate process and indeed it could be said that it provided a legal justification for other *extra-constitutional* take-over of governments by military and other extra-legal actors. Finally, the case gave legitimacy to the use of state power in order to achieve questionable objectives with political problems which has been with Uganda since 1966.

iii. The Aftermath of the 1966 Uganda (Kabaka) Crisis (1966-1971)

The events of 1966 were followed by government proposals for a new const. In the first half of 1967, proposals by government on a new const. framework were tabled before Parliament. They were widely disseminated and the proposals debated seriously by politicians & academics. After the *public debate*, government revised some of the proposals considered either too *draconian* or *unrealistic*. They were then submitted to Parliament which

constituted itself into a CA that debated the proposals. The 1967 const being Uganda's third



came into effect on 8 September 1967, and formalised most of the initial changes proposed in the 1966 const.:- (i) establishment of the *republic*; (ii) abolition of the *kingdoms*; (iii) creation of an *executive* president; and (iv) increased *restrictions* on human rights.

Indeed after the 1967 const., civil restrictions on the press, free association and political activity. The culmination came on 9 Oct. 1969 when there was an attempt on Obote's life, for on 20 Oct. 1969, the existing political parties including KY and DP were declared illegal and Uganda became *de facto* a single party state (as this was not declared by law). The proscription of opposition parties led to further detentions and crackdowns which culminated in a situation where Uganda slipped under a virtual state of emergency.

The period was not all that disastrous. There was instances where a light of ray shone through as was in the case of *Uganda v. Rajat Noegy & Abu Mayanja (Transition case)*. Rajat Noegy was the editor of the famous 'Transition' magazine for people concerned with Africa. In the middle of 1967, a mercenary who had escaped from Katanga (Congo) and ended up in Uganda was acquitted for illegal entry. This sparked off a serious debate on the independence of the judiciary in Uganda. There were routine programmes on TV, newspapers and magazines. In an article to the *Transition* Mayanja, an MP and well-known lawyer alleged that it was a basic problem with the judiciary but that the problem was a reluctance to appoint Ugandan judges, and that it was unbelievable that after 7 years of independence the government had failed to find qualified Ugandans to assume the posts of judges. [In fact, A Mayanja took the view that this was because Obote had failed to find anybody qualified from his home district of Lango - that he would rather not have any other Ugandan]

The letter was published and the accused detained and charged with the offence of sedition. The case was brought before Kamapla chief magistrate, (as he was then) Mohammad Saied who acquitted them in a judgement that has stood the test of time holding that the offence of sedition was not designed to strangle free speech and that a vigorous and fearless press was one of the foundations of strong government.

Nevertheless, the government wanted its victims, so the two were transported to ranch on the lake where Noegy languished for a year before going to exile in Ghana while A Mayanja remained in detention until 1971.

Importance of the case (decision): The decision refused to go well with the other cases of the period (e.g. *Lumu & Ors* (1966); *Re Ibrahim* (1970) EA; *Shah v. AG* (1969) EA, *Matovu* case) given its strong affirmation of the rights of the individual, and in so doing, it attempted to make a strong statement for independence of the judiciary.

The Process of the Formal Destruction of Constitutionalism – Period of Amin’s Militant Politics (1971-1979)

The 1966 crisis had propelled Amin to the forefront of Ugandas political scene. It was not surprising that upon the departure of Obote for a Commonwealth conference in Singapore, on the morning of 25 Jan. 1971, the army announced that it had staged a *coup-de-tat* in order to save a bad situation from getting worse, and so marked the onset of the period of ‘militant politics’ that was to characterise the Amin regime. The Amin coup listed 18 reasons of grievances against the Obote govt, more significantly: (a)

violations of human rights thru detentions, lack of political freedom, (b)¹⁵¹
state of emergency in country (since

SIKIA
LOW

1969); (c) corruption, nepotism, and tribalism, etc. (for by the time Amin was deposed, his government had violated all the 18 points)

The legal (constitutional) instrument that ushered in the Amin regime was a proclamation known as Legal Notice No.1 of 1971. Its significance as with all the subsequent Legal Notices No. 1 of 1979 (UNLF) and No. 1 of 1986 (NRM) was the introduction of a new constitutional legal order in Kelsenian terms as well as to bestow legitimacy on the new regime (government). The constitution of Uganda was invariably the 1967 Constitution read together with Legal Notice No 1 of 1971 (as modified as such). The Legal Notice comprised the following features. It suspended several articles of the 1967 Const., *inter alia*, (i) art. 1 on supremacy of the const. (in effect Amin himself became the supreme law, and no longer subject to the const. and he ruled by decrees); (ii) art. 3 (on the amendment of the const. by Parliament which could now be done by Amin); (iii) art. 63 on powers to make laws which would be vested in Amin through the promulgation of decrees; (iv) chap. IV on the executive and qualifications and election of the President who now was to be designated the Head of State (cf. *Constitution (Modification) Decree, No. 5 of 1971*); and (v) chap. V on the Parliament with legislative powers which would become vested in Amin and a Council (cf. *Parliamentary Powers (Vested) Decree, No. 8 of 1971*).

The immediate period was characterised by jubilation in some parts of the country, in particular Buganda with the return of Mutesa's body, while other parts faced purges and bloodshed specially of the Langi and Acholi soldiers in the armed forces. Similarly, all political prisoners were released (Ibingira, Abu Mayanja, Bendicto Kiwanuka) the majority be co-opted into the initial primarily *civilian* government. But within a short time, a clamp-down on opposition began and the system of govt took on the character of

a *military junta* with all institutions (executive, legislative and judicial)¹⁵³
manned by the military. Amin



introduced a total dictatorship, and within space of 2 years, he had completed in turning the country into an absolute military institution.

1. Although Amin had released political prisoners detained by Obote, his first act was to suspend political party activities which was secured by *Suspension of Political Activities Decree, No. 14 of 1971*.

No person was allowed to manage, take part in, collect subscription for, raise funds or otherwise encourage political party activities. Public meetings or processions designed with political motives are banned as are the signs, symbols, flags, songs, statements, slogans and names of political parties.
[Orwellian *Animal Farm*]

The punishment imposed for the contravention of this law were very severe. This invariably forced any political activity underground. Several other laws were passed in the course of time to deal with political dissent leading to the violation of rights and freedoms. These included:

- (a) The *Detention (Prescription of Time Limit) Decree, No 7 of 1971* which allowed for indefinite detention without trial (30 days).
- (b) The *Newspapers and Publications (Amendment) Decree, No 35 of 1972* which permitted the Minister of Information to prohibit the publication of any newspaper for an indefinite period if satisfied that it was in public interest.
- (c) *Military Police (Powers of Arrest) Decree, 1971* which gave the military powers of arrest over civilians in effect removing them from the police.

By this decree, the armed forces (and state intelligence agencies, e.g. the¹⁵⁵ SRB) could carry out arrests, summary trials as well as execute



sentences which not only eroded the traditional *policing function* but also *judicial powers*. The implications of this decree was remarked upon by Justice Russel in case of *Efulayimu Bukenya v Attorney-General* (1972) HCB 87 (which together with the case of the British citizen which would lead to Ben Kiwanuka's disappearance are the only significant decisions of the period that came to condemn the government)

2. In all these aspects of the creation of totalitarian regime, the most drastic was the assault against the judicial arm of government which was secured through the establishment of quasi-judicial organs not traditional empowered to exercise judicial power over civilians. These were established by virtue of the *Trial by Military Tribunals Decree, No. 12 of 1973* (comprised by characters with such fancy names as Com'der Suicide, Captain No Parking, etc.). A similar quasi-judicial organs was the Economic Crimes Tribunal for offences of smuggling, hoarding, etc.

3. The erosion of judicial power reached its culmination with the promulgation of *Proceedings Against the Government (Protection) Decree, No. 8 of 1972*. It was promulgated following the release of a British citizen on an application for a writ of *habeas corpus* by Chief Justice Ben Kiwanuka. The decree in the mould of those of the Obote regime gave the government immunity, by ousting the jurisdiction of courts to grant relief, as regards actions for injuries resulting from 'measures taken to protect the public and security and the enforcement of discipline, law and order'. With the jurisdiction of the courts ousted and the supremacy of the constitution a foregone matter, the military government was in effect beyond the check (as to its acts) of the law. Not even the colonial period had wrecked un(non-)constitutionalism to this extent in Uganda's history. If Obote had

introduced militarism into politics, Amin carried it to its logical conclusion in¹⁵⁷
terms of intensity - the regime presided over reign of terror



in which human rights violations ranging from detentions, torture, extra-judicial killings, destruction (and deprivation) of property (Asians) of individuals did prevail.

The UNLF Period and Constitutionality of Removal of Yusuf Lule

The period from 1979 can be described as one involving the search for constitutional re-construction. This search for re-construction was as a result of a government formed in exile specifically during the Moshi Conference. The main participants of this conference were approximately 22 exiled political groups based all over the world. The main instrument which bound the participants together consisted of the minutes of (and the resolutions that were passed at) the Moshi conference. The overall body that was ushered in upon the deposing of Amin's government was the Uganda National Liberation Front (UNLF), which was the umbrella organisation of the various exiled political groups associated with the Moshi conference. The UNLF was made of distinct organs, which included—

- (i) The National Executive Committee (NEC) with a person who was elected as president being Yusuf Lule and his Vice was Akena P'Ojok. The NEC would become the executive organ of the UNLF government.
- (ii) The National Consultative Council (NCC) which was chaired by Edward Rugmayo with his Vice was Omwony Ojok. The NCC would largely constitute the legislative organ of the UNLF government.
- (iii) The Military Commission which was chaired by Paul Muwanga and

his vice was Yoweri Museveni.

The UNLF had also established a cabinet in exile and when Amin fell on 11 April 1979, the chairman of the UNLF, Professor Lule, was sworn in as the



fourth president of Uganda. The main constitutional instrument that ushered in the UNLF government was Legal Notice No.1/1979, which effectively restored article 1 of the 1967 Constitution (on the supremacy of the Constitution).

The government of Professor Lule was shortlived surviving only 68 days as it was faced with internal wrangling and conflicts over ideology and policy the last straw came about as a result of a dispute over appointments. Some members of the NCC insisted that all presidential appointments must be ratified by the NCC on the premise that this was in accordance with the minutes of the Moshi Conference. Professor Lule argued that the spirit of the Moshi conference had only stipulated that he rule by the 1967 Constitution and that the Constitution stipulated nothing about ratification of presidential appointments. He argued that, as a president brought in the 1967 constitution, which was the supreme law of the land, he was not subordinate to the NCC. Subsequently, he organized a cabinet reshuffle in which he transferred Paulo Muwanga from the Ministry of Internal Affairs to that of Labour and replaced him with Andrew Lutakome Kayira. The NCC revolted and, in a motion of no confidence, they voted to replace President Lule with then Attorney-General Godfrey Binaisa. The events surrounding Lule's removal as President were to result in the first Constitutional case since 1966. This was the case of *Lutakome Kayira & Ors v. Edward Rugumayo & Ors*, Constitutional Case No. 1/1979.

Lutakome Kayira's case sought to challenge lawfulness of the removal of Lule as President under the 1967 Constitution. The High Court observed that the existing constitutional framework at the time was the 1967 Constitution (as modified by the Legal Notice 1/1979). In light of that framework, the Court went on to observe that the 1967 Constitution (as

modified) did not provide a procedure for the removal of the President.¹⁶¹
On the more practical note, the court ruled that to acquire into the
lawfulness of the removal of Lule as



President would raise the question of the legitimacy of the then existing government (of Godfrey Binaisa as President).¹⁸ The significance of *Kayira's case* is—

- (i) It tested the extent to which Kelsen's theory, as postulated in *ex parte Matovu's* case continued to exercise influence in politics and governance in Uganda and the courts tended to refer to this theory to secure *political continuity* at the expense somewhat of *constitutional government*.
- (ii) Being the first constitutional case in over a decade it also tested the degree to which the judiciary in Uganda had been able to re-assert its independence given the background of Amin period of direct military rule. In this respect the judiciary failed to reassert its independence (a fact that would be manifest throughout the years of the UNLF and Obote II (1979-1986)).

After Lule's removal, Binaisa fall into the same trap when he tried to reshuffle Muwanga, Museveni and Ojok and they nearly got rid of him and a Military Commission, led by Muwanga and Museveni, was put in place. The Military Commission created a Presidential Commission that comprised on three members, two of whom were judges and the other a long serving civil servant. But this body was merely cosmetic and real executive power remained with the Military Commission and basically army. The Military Commission put in place a process for the holding of general elections that took place in December 1900. These elections are widely believed to have been rigged in favour of UPC and Obote.

¹⁸ For a detailed reading of the case, see Oloko-Onyango, *Judicial Power* (1993).



Obote II Government (1980-1985)

The second government of Obote was characterized by a number of significant developments. Among these were the attempts to revive the economy ravaged by several years of mismanagement during the Amin years. As far as the Constitution was concerned, the Obote's government reverted to the 1967 constitution having been its authors and were happy with it. In effect, the clock was turned back to 1967.

The only new factor during Obote II government was, that for the very first time in Uganda's history, a civil conflict broke out as a result of disagreements over elections. The civil conflict did produce not only military confrontation but significant human rights violations. The Obote government carried out purges often directed against civilians to alleged support of the rebels which often resulted in murders, detentions and forceful movement of peoples into detention camps. Furthermore, a culture of detention without trial torture and disappearances re-surfaced and became common day occurrences. The resort to the Public Order and Security act of 1967, which had been a feature of the UNLF period, would merely see its continued use be manifest during the Obote

II government. In fact, a great number of cases did come before the courts (especially during the UNLF period), but were often dismissed given the fact that article 13 of Public Order and Security Act precluded the courts from enquiring into the validity of detention orders. The effect was that the numerous individuals detained, under preventive detention orders, got no remedy or relief from courts as regards violations of human rights of individuals and freedoms.¹⁹

¹⁹ For a detailed reading of these cases (especially between 1979 and 1980), see Oloko-Onyango, *Judicial Power* (1993).



The National Resistance Movement/Army (NRM/A) Government and Constitutionalism in Uganda (1986-1995)

The period can be described as one of the search for a new mode of constitutionalism. The NRM/A came to power on the platform of promising a 'fundamental change' in which it declared that it would distance itself from the previous modes of government. The guiding philosophy of the, NRM/A government was to be found in the Ten-Point program which outlined the basic elements of its agenda for political and socio-economic government of Uganda. Amongst these being–

- (i) creation of a self-intergrated economy
- (ii) elimination of corruption
- (iii) reestablishment of democracy
- (iv) restoration of rule of law and respect for human rights

The major constitutional instrument of the period was Legal Notice No. 1/1986 of the Constitution. The Legal Notice retained article 1 of the 1967 Constitution (on supremacy of the Constitution) but it nonetheless suspended the operation of article 3 (on amendment of the constitution), chapter IV (with exceptions on the presidency) and chapter V (and in particular article 63). In respect of chapter V (and article 63), the Legal Notice amended the provisions in question by constituting the National Resistance Council (NRC) as parliament was legislative powers.

The Legal Notice 1/1986 also contained in its schedule a code of conduct to govern the operation of the NRA. It contained the basic principles by which the NRA as an army was to be guided and, in this respect, the army was for the first time in Uganda's history subjected directly to a *constitutional*



government. The history of the NRM/A period (1986-1995) can largely be seen in three phases—

- (i) The phase of consolidation (1986-1989)
- (ii) The phase of entrenchment (1989 –1993)
- (iii) The phase of crystallization (1993-1995)

In terms of constitutional history, for better or for worse, the NRM/A government has had the most profound influence upon the *constitutional framework* of government, which has itself influenced the character of *constitutional government* in Uganda.

In 1986, the NRM/A was a broad umbrella in incorporating a broad spectrum of different ideological and political views, under the so-called ‘broad-based’ system of government. However, by 1995, there had been a considerable narrowing of the base as well as the transformation in the manner in which the NRM/A operated and described itself. Nonetheless, the major changes introduced by the NRM/A have been in terms of both *institutional structures* and the *conceptual framework of government*. At the level of *institutional structures*, the changes included the following—

(a) *The Inception of Resistance Councils and Committees (RCs)*

The RCs system had already been introduced in the areas of South Western Uganda, where the NRA, then as a rebel group, had taken control of that part of the country. With the coming to power of the NRM, the RCs system was introduced throughout the country. The RCs transformed the nature and content of local government by breaking the monopoly of the chief. For the first time, power at the local level was divested from a single

SIKIA
Low

placed in a committee or council. Furthermore, the RCs system brought about a new form of *participatory* democracy at the grassroots, whereby the local people were involved in the election of their leaders from the village to the district level.

Furthermore, the RCs system also sought to bring about a separation of powers with the establishment of not only the councils and committees, which largely dealt with legislative and executive powers, but also the RC courts which exercised judicial powers. It may be said through that overtime as the NRM/A entrenched itself, the RCs became more and more like the institutions of the ruling power such that, by 1995, they were merely a shadow of what they were originally meant to be. Of note is the fact that the system of grassroots government introduced by the NRM has since been adapted as an institutional structure of government in the post-1995 period (although the terminology has changed from RCs to LCs (Local Councils)).

(b) Establishment of the office of the Inspector General of Government

As part of its promise to eradicate corruption (and mal-administration), the NRM established the office of the Inspector-General of Government (IGG) (or the *ombudsman* in other countries). No other government in Uganda's history had previously instituted such an office. The IGG's office was created to check on administrative and executive excesses and its mandate included the prevention of abuse of office and investigation into allegations of corruption, mal-administration and abuse of human rights. Nonetheless, when one examines the operation of office from 1988 when it was established as a *statutory* body until 1995 (when it was transformed into a *constitutional* body under the 1995 Constitution), one will

discover a number of shortcomings of the office.

171



- (i) Firstly, the IGG was responsible only to the President and this in effect did not ensure the independence of the office to carry out its functions.
- (ii) Secondly, the findings and recommendations of the IGG's office between 1988 and 1995 were never made public.

Nonetheless, the establishment of the office has had a significant importance, given that the IGG's office is, under the 1995 Constitution, now a major constitutional body with a similar mandate of its 1988 predecessor.

(c) Establishment of the Commission of Inquiry in Violations of Human Rights

As part of its promise to restore the rule of law and respect of human rights, the NRM sought to expose the impunity of the previous regimes in violations of human rights. To that end, it established a Commission of Inquiry in Violations of Human Rights with Justice Oder as its Chair-person (the Oder Commission). The Oder Commission, established in 1987, was mandated to investigate violations of human rights in Uganda and proffer recommendations that would ensure greater respect of rights in the future. The Commission completed its task and presented a report in 1994. While the report of the Oder Commission has been significant in highlighting and documenting human rights violations in Uganda since independence, it had a number of shortcomings.

- (i) Firstly, the Commission's mandate was restricted to only the period from 1962-1986. It means that instances of human rights violations under the NRM/A in the period 1986-1994 were not investigated

- (ii) Secondly, in spite of the report of the Commission, no action was or has ever been taken to prosecute or otherwise the persons named as perpetrators of human rights violations in the period of investigation.

It is to be noted however that notwithstanding these shortcomings, the Oder Commission was influential in the subsequent creation of a permanent human rights monitoring body (which was one of the major recommendations of the Oder Commission)²⁰ – this would lead to the creation, under the provisions of the 1995 Constitution, of the Uganda Human Rights Commission.²¹ It is further to be noted that in spite of the promise to restore respect for the rule of law and respect of human rights, this fact while manifest in the early cases such as *EF Ssempebwa v. Attorney-General*, Constitutional Case No. 1/1986 (right to property), this was not the case in subsequent years – as evident in cases such as *Re Mwangi* (1989) (right to personal liberty) and *Rwanyarare & Anor v. Attorney-General*, Constitutional Case No. 1/1994 (right to freedoms of assembly and association).²²

(d) *Establishment of the Uganda Constitutional Commission*

The NRM/A's concerns over the future of constitutionalism in Uganda was reflected in the establishment of a Constitutional Commission. The Uganda Constitutional Commission (Odoki Commission) was mandated to traverse the country to gather views as to a constitutional framework for the future political governance of Uganda. The Commission, established in 1988, would accomplish its task and submit its report in 1993, wherefrom it was debated by a Constituent Assembly, elected for that sole purpose, in 1994. The result was

²⁰ *Report of the Commission of Inquiry into Violations of Human Rights in Uganda from 1962 to 1986*, UPPC, Entebbe, 1993, p. 582, recommendation 13.1(II).

²¹ 1995 Constitution, art. 51.

²² For a detailed reading of the *Ssempebwa* and *Mwanga* cases, see Oloko-Onyango, *Judicial Power* (1993).



the promulgation of a new constitution to replace the 1967 constitution, i.e. the 1995 Constitution of the Republic of Uganda.

On the other hand, at the level of ***conceptual framework of government***, the changes introduced by the NRM/A included the following—

(e) The Inception of the Non-Partisan System of Political Governance.

From the very outset of its government, the NRM/A conceived its system of government as one based on non-partisan politics, i.e. a system of government in which access to political participation was not based on a person's political party leanings or ideology. The inception of the non-partisan or *no-party (Movement)* system of governance coincided with the suspension of political party activities at the outset of the NRM/A's regime. The argument for this action was that political parties were largely sectarian and divisive and had been responsible for the political instability Uganda had experienced since 1962. The suspension of political party activities was largely seen as a result of a gentleman's agreement to allow the new system of government to operate while incorporating individuals from the political parties. That is why Legal Notice No. 1/1986 does not expressly mention the fact the political parties were not to exist. However, the first step towards the outright suppression of political parties occurred when the NRM/A extended its period of office in 1989. Legal Notice No.1/1989 (Amendment Statute of 1989) extended the term of office of the NRM/A government advancing a number of reasons, such as that they could not leave office while the constitutional making process was at hand. By the time of Constituent Assembly (CA) elections in 1994, non-partisan principles of government had, in effect, sidelined political party activity. The enactment of the Constituent Assembly Statute of 1993 would in fact

endorse the no-party principles that had defined the NRM/A governance



since 1986 and an attempt by political party activists to challenge these principles under the statute for the election of Constituent Assembly (CA) delegates before the courts was unsuccessful.

The Constituent Assembly Statute of 1993 had specifically provided that election of delegates would be based on such non-partisan principle of ‘individual merit’. In the case of *Rwanyarare & Anor v. Attorney-General*, Constitutional Case 1/1994, the applicants sought to challenge this mode of election of the CA delegates as being in violation of the right to freedom of association and assembly guaranteed under article 8 of the 1967 Constitution. The application was rejected by the Constitutional Court on the grounds that—

- (i) limitations on individual rights was permitted in *public interest* and that public interest was manifested in the desire to ensure the maximum participation of individuals in the constitution-making process.
- (ii) the Constituent Assembly, which was mandated to promulgate a new constitution, was only transitional and in effect would not limit those rights for too long.

Invariably, the non-partisan system of government has become a feature of governance in Uganda beyond the NRM/A regime (1986-1995), as it remained the system of governance long after the 1995 Constitution, and is provided for under the 1995 Constitution as a ‘political system’.²³

(f) Promotion and Protection of Rights of Women

While the NRM/A regime was concerned with the restoration of the rule of law and human rights in general, a crucial aspect of its concern was the

²³ 1995 Constitution, art. 70.



women. The NRM/A's initiative on this matter is significant given that under no previous government was the women's question accorded as much institutional and political attention. The NRM/A government put in place significant changes in the law in particular respect to women's representation in the NRC (legislature) but also affirmative action policies with respect to the appointment of women to public offices and significantly, the introduction, in 1992, of the extra 1.5 points for admission of female students to tertiary institutions.

The early efforts towards promotion and protection of rights of women by the NRM/A government have been advanced under provisions of the 1995 Constitution²⁴ and affirmative action policies since 1995.



²⁴ 1995 Constitution, arts 21, 31, 32, 33, 78 and 180.

